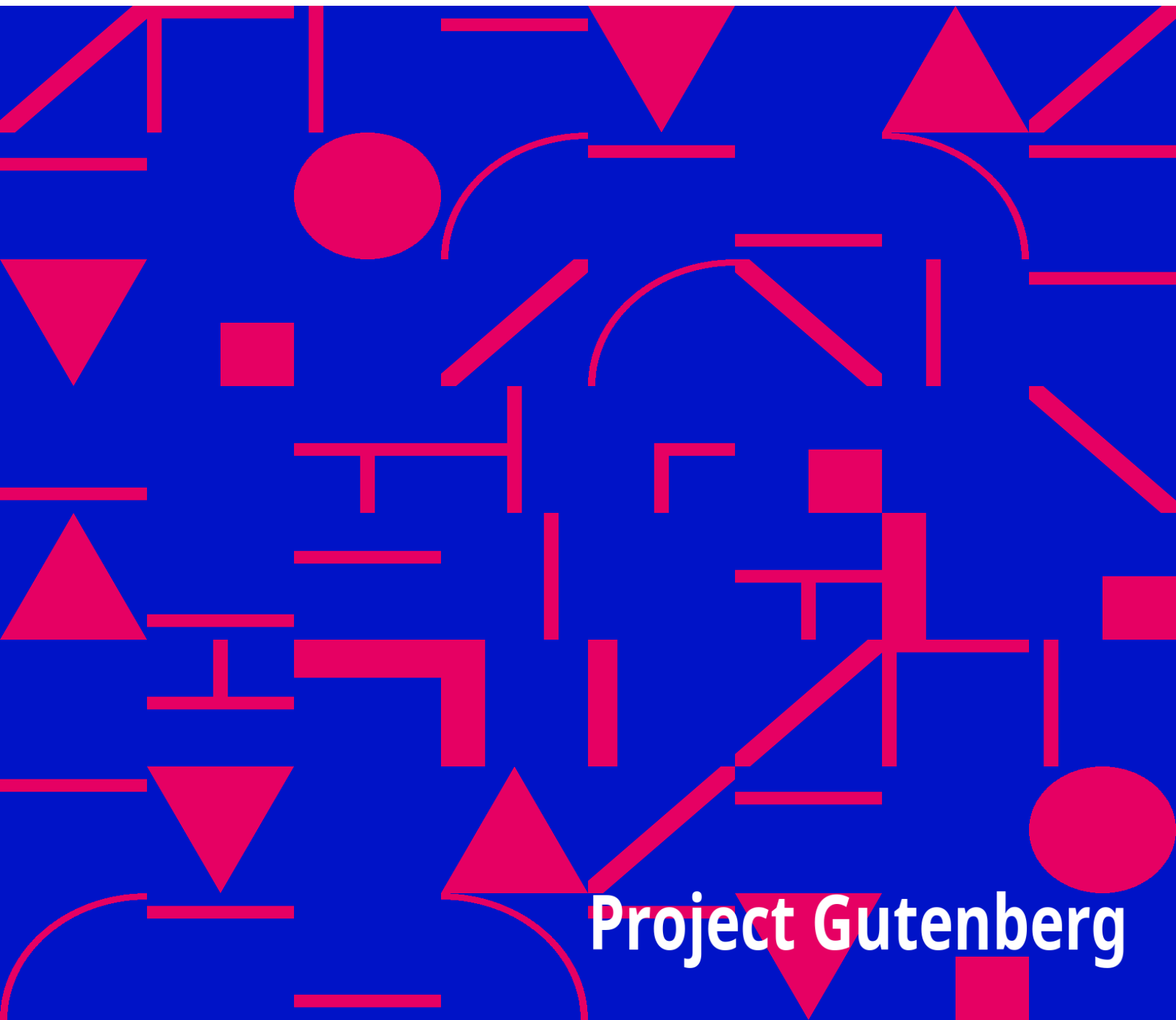


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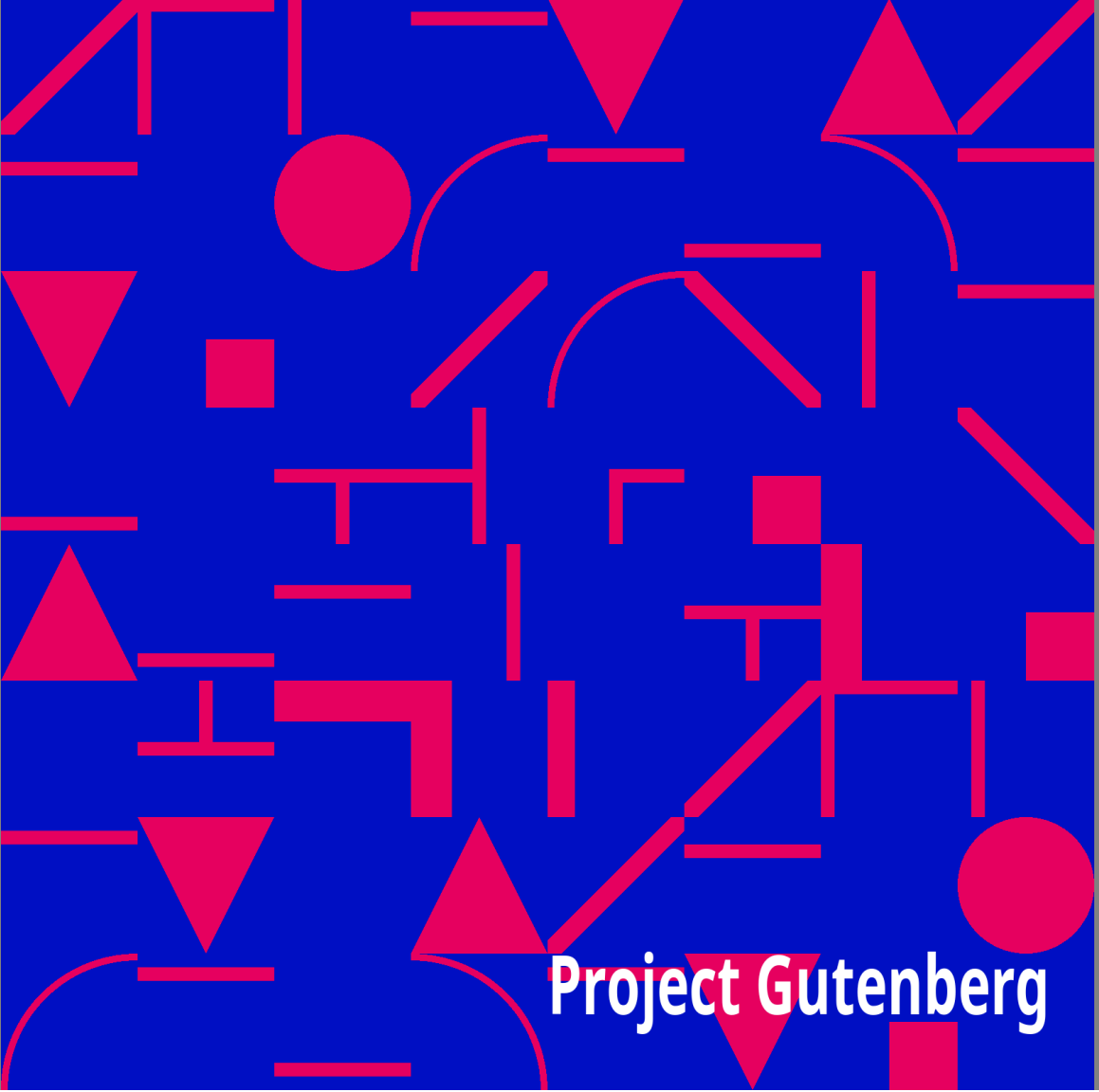
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LONDON, SATURDAY, MARCH 25, 1854.

Notes.

ORIGINAL ENGLISH ROYAL LETTERS TO THE GRAND MASTERS OF MALTA.

(Continued from Vol. ix., p. 101.)

It will be remembered that the last English royal letters which we sent were translations of those from Henry VIII. to L'Isle Adam; and finding none recorded of Edward VI., Mary I., Elizabeth, James I., Charles I. (or from Cromwell), we come to the reign of Charles II. We have now before us ten letters bearing the autograph of this monarch, all of which we hope to forward in due course according to their dates. The two of the earliest date are as follow. The first was written to introduce the English Admiral, Sir Thomas Allen, who had been sent with a squadron into the Mediterranean to protect English commerce; and the second, to claim from the Order a large amount of property which belonged to Roger Fowke, the English consul at Cyprus, and had been seized by a Maltese commander in one of his cruises against the Turks in the neighbourhood of that island. Their perusal will serve to show the deep interest taken by Charles II. in all which related to the commercial affairs or legal rights of his subjects.

WILLIAM WINTHROP.

Malta.

No. VII.

Charles the Second by the grace of God, of Great Britain, France, and Ireland, King, Defender of the Faith, &c.

To the most illustrious and most high Prince, the Lord Nicholas Cottoner, Grand Master of the Order of Malta, our well-beloved cousin and friend—
Greeting:

Most illustrious and most high Prince, our well-beloved cousin and friend.

Having deemed it fitting to despatch a squadron of ships under the command of our well-beloved and valiant Sir Thomas Allen, Knight, for the protection of the freedom of navigation and commerce of our subjects in the Mediterranean Sea, which is never too sure, and sometimes becomes endangered, we have determined to request your highness, by right of amity, to permit him and our ships under his command, as friends, to touch, in case of need, at any of the coasts of your highness' dominions; and also to allow our ships to make use of your highness' harbours, whenever it may become necessary to refit or re-victual them; and that they may purchase at a proper price those things which they may require, and experience such other offices of friendship and humanity as may be needful: and as we no way doubt of your highness' amicable feelings towards us and ours, we are desirous that your highness should be assured that on any opportunity offering, we will reciprocate with equal readiness and benevolence.

It only remains for us to express our wishes for your highness' perfect health and prosperous success everywhere.

Given in our Palace of Westminster, on the 17th day of the month of January, in the year of our Lord 1667-68.

Your Highness' good Cousin and Friend,

CHARLES REX.

No. VIII.

Charles the Second by the grace of God, of Great Britain, France, and Ireland, King, Defender of the Faith, &c.

To the most illustrious and most high Prince, the Lord Nicholas Cottoner, Grand Master of the Order of Malta, our well-beloved cousin and friend—
Greeting:

Most illustrious and most high Prince, our well-beloved cousin and friend.

Some years have elapsed since we first addressed letters to your highness concerning certain goods and merchandise, to the value of 4500 pieces of eight, which had been unjustly seized by some of the ships which it is customary to despatch annually from your highness' island to cruise against the Turks in the neighbourhood of Cyprus, from our subject Roger Fowke, a person for many reasons by us well beloved, and our consul in the island of Cyprus; and also concerning the sentence which, after many delays and much trouble, had been at last unjustly given in favour of your people.

Farther complaints have, however, been received from our subject, stating that our letters have had little effect with your highness, and that he, already wearied with long expectation, has not had anything restored, that his expenses are increasing to a great amount, and that little or no hope remains of reparation for his loss.

Painful, indeed, was it to us to hear our subject relate such injustice on the part of the Knights of Malta; we, however, thought it right to make it clearly appear that nothing has remained untried to bring back to more sane counsels the generous minds of the Maltese; and therefore, under the advice of our Privy Council, we deemed proper to refer, without loss of time, the complaint of our subject, together with the letters which we formerly addressed to your highness, and those which your highness latterly wrote to us, to our advocate in our High Court of Admiralty, Sir Robert Wyseman, Knight; who, having well considered the whole, has expressed his opinion in the following terms:

"I have read and seriously pondered the petition of Roger Fowke, transmitted to me by your Majesty's special mandate; as also the letters written by your Majesty to the Grand Master of the Order of Malta in favour of the above-mentioned, and those from the said Grand Master in reply; and it is evident to me, after mature examination, that your Majesty has done so much, and that it is proved that the sentence of the Maltese Tribunal against the said Roger Fowke was pronounced contrary to right and justice (as is clearly shown in the letters written by your Majesty to the Grand Master); that therefore it appears to be incumbent on me only to set forth to your Majesty, and to the Lords of the Privy Council, whether it be my opinion that sufficient satisfaction

has been given by the Grand Master's letters to your Majesty, who by the above-cited letters demand restitution; and if not, whether in consequence it be lawful to your Majesty to grant the so-called letters of reprisal, on which subject I beg humbly to submit to your Majesty, and to the singular prudence and judgment of the above-mentioned Lords, this my opinion; that is to say, that the answers of the Grand Master are so far from being in any way satisfactory, that from them it may be easily perceived that the above-mentioned Grand Master, although he does not deny in express terms reparation for his loss to the above Roger, nevertheless does not decree anything certain on this head; from which your Majesty may reasonably conclude that the said reparation was refused. Nor does it tend to his defence that he asserts that all that was done by his tribunal was done by solemn sentence, that the judges were men of great reputation, and that it is to be believed that the reasons produced by both sides were justly considered; for judicial authority is not of the same value as regards foreigners and subjects. It is not lawful for subjects to demand a re-examination of the sentence pronounced by their superiors, although to foreign princes it entirely appertains to make such demand, in cases interesting themselves or their subjects; otherwise, if all given sentences were considered as freeing nations from reprisals, such decrees might perhaps be obtained in any case, even though manifestly unjust; and consequently it is by all agreed to be a just cause for reprisals, not only when justice is not rendered, but also when in any case, not of a doubtful nature, judgment may have been given against right; although certainly, in cases of a doubtful nature, the presumption would be in favour of those who may have been elected as public judges. Had the Grand Master indicated to your Majesty that the said Roger Fowke might have preferred an appeal against the sentence pronounced against him to a superior tribunal, and that by the negligence of the said Roger the first sentence had become affirmed, in that case the remedy demanded by your Majesty would have been untenable; but the said Grand Master makes no mention of such appeal: I am therefore of opinion that nothing in the law of nations could militate against the lawfulness of your Majesty's granting letters of reprisal in the manner demanded.

(Signed) ROBERT WYSEMAN."

Without doubt the law of nations would warrant our extorting from the hands of your highness' subjects, by issuing letters of reprisal, that which we have not been able to obtain after so many years by means of the letters written in favour of our beloved subject and friend; and the deplorable state of the said Roger requires that we should now exact by our own authority that which we have in vain sought to obtain by means of simple communications. But taking into serious consideration the lamentable present state of Christianity, and the daily augmentation of the large empire of our common enemy, and how distinguished has been the valour of the Maltese knights, always constantly exposing themselves as a bulwark to so pertinacious an enemy, it would be very painful to us to be compelled to have recourse to reprisals, or to any such severe mode of proceeding, for the reparation of the loss. The glory also of the Christian name, so often valiantly defended, has caused us willingly to believe that we must not yet despair of obtaining from your highness' authority that reparation for his loss which our subject hopes to obtain by reprisal, and therefore, putting aside the remedy of right, and our Privy Council persuading us to milder measures, we have thought proper by this letter to seriously request your highness, by that justice which is the duty of princes, and of the defenders of Christianity, to deign to procure without delay to our trustworthy subject, who has suffered so great an injustice from the Maltese Tribunal, and who is exhausted by the delays of so many years, full compensation for all his losses, including also the amount of his expenses; so that we may never have cause to regret that we, putting aside the law of nations, have till now abstained from reprisal, and so that henceforth the world may eulogise the Maltese as not being less just than valiant.

We have only now to recommend your highness and all your Knights to the most good and most great God.

Given in our Palace of Whitehall on the 29th day of April, of the year of Human Redemption 1668, and of our reign the twentieth.

Your Highness'

Good Cousin and Friend,

CHARLES REX.

Raphael Cottoner, to whom the last letter was addressed, ascended the Maltese throne in October, 1663, on the decease of his brother Raphael. All historians agree in stating that he was a man of a noble carriage, high and honourable character, and withal a clever diplomatist. He died in March, 1680, after a happy and glorious rule, in the seventy-third year of his age, and seventeenth of his reign. The following letter written by him may be of sufficient interest to excuse its length. Its perusal will show the great respect which was paid by the Order of St. John to an English monarch, and the "incorruptible" manner in which justice was administered at this island nearly two centuries ago.

To the King of Great Britain.

Most serene and invincible King:

A short time since John Ansely, the attorney of Roger Fowke, delivered to us your most serene Majesty's gracious letters, in reply to mine regarding the affair of the said Roger; from which, not without great disturbance of mind, I perceived how incorrectly what had taken place had been reported to your Majesty. But my grief was in some measure assuaged by your Majesty's continued benignant protection of this my Order; through which it came to pass that it was determined to abstain from granting the letters of reprisal which it was the opinion of your Majesty's advocate in the High Court of Admiralty, inserted in the above-mentioned Royal Letters, might have been granted to the aforementioned Roger, for which I truly return your Majesty my most sincere and humble thanks. The above Roger still claims of right the sum of 4,500 pieces of eight, which he asserts had been formerly seized by some armed ships of this island; from which sum, together with the expenses incurred, or to be incurred, he forms another greater sum of about 24,500, which he also claims.

But as it would sufficiently appear from your Majesty's letter, which contains the above-mentioned opinion of the said advocate, and also from the verbal report made to me by the said John Ansely, that your Majesty felt persuaded that the said Roger had both lost his cause before the Judge of the Prize Court, and subsequently been denied an appeal to the Supreme Court, and, lastly, that his attorney had been treated with violence, rather than under any order of right, I, to confess the truth, being much mortified,

cannot but endeavour, with all due respect in my power, to demonstrate the real state of the case to your Majesty; and hope, by a more faithful narrative of all that occurred, to convince your Majesty of that equal distribution of justice which in this place is constantly observed, both to the inhabitants and foreigners, with incorruptible honesty.

Before, however, beginning to explain the affair from its commencement, it behoves me to inform your Majesty, that not only subjects of Christian Princes, but Greeks and Armenians, and other persons subject to the rule of the Turks, the bitterest enemies of this Order, are continually coming to these islands for the purpose of instituting or continuing suits at law against the captains of our ships and other inhabitants, yet we have never heard from them that justice is either denied or refused. I therefore humbly beseech your Majesty to consider, and with benignant mind to reflect, what faith ought to be given to those who have dared to affirm that any contrary course had been pursued or tolerated by me against the said Roger; and the more so, as it has been the constant wish of my Order to deserve well of your Majesty's subjects, and to take particular care of all foreigners. This we trust will be sufficiently shown from the fact of our always having employed one of the principal lawyers to undertake the defence of foreigners; not indeed altogether gratuitously, but under such laws and restrictions that he must remit to them the third part of the usual stipend which it is customary to receive from the inhabitants, and even my knights. From which it may be concluded how well and how honourably foreigners are treated here, and how unlikely it is that justice should be denied to any of those who it is proved are favoured with such grace and love.

But to return to the affair in question, I humbly submit to your Majesty, that in the year of our salvation 1661, John, called De St. Amand, acting as attorney in the name of the above-mentioned Roger, appeared before the aforesaid judge of the Prize Court, demanding the restitution of different kinds of merchandise, which he asserted had been seized by certain captains of ships; but it not appearing to the said judge that he had produced convincing proofs of the fact, they were declared inadequate, and not sufficiently legal. From this decision the said attorney, as is usual in such controversies, appealed, on the 10th of July, 1662, to the Supreme Court of Audience in council, at which I, together with the Chief Grand Crosses of

my Order, assist; but he afterwards of his own accord neglected to follow up said appeal.

Subsequently, in the year 1665, there appeared another attorney of the said Roger furnished with letters from your most serene Majesty, to whom I immediately explained that I had no right to order the actual restitution of the money demanded; but that if he would act according to law, and seek it by a judgment, I promised to give my co-operation, which I undoubtedly would have done; so that he might have been permitted by the said Court of Audience to recommence the suit, although it had been in a former instance deserted. But the attorney having replied that he was not furnished with this authority, left the island of his own free will and accord.

From that time no other person has appeared, except the above-mentioned John Ansely, who recently delivered to me your Majesty's above-mentioned letter; which I having thought proper to communicate to my Council, I procured that the venerable brethren Henry de Estampes Valancay, the Grand Prior of Campania, and Don Gregory Caraffa, Prior of Rocella, should be deputed commissioners to examine this case. And they having heard what the said Ansely had to say, offered to him in any name, and in that of all my Order, an opportunity to make an appeal which had been deserted; but the said Ansely, for want of proper authority as he stated, did not accept the proposition.

Such being the case, I reverently submit to your most serene Majesty the following arguments, to which I earnestly entreat your Majesty to apply your Royal attention, and your Majesty's accustomed serenity and clemency.

In the first place, it is possible that the said Roger may have been really deprived of his property; but it does not follow that the proofs adduced by him of that fact were perfectly convincing, or entirely in accordance with the law. And even if they had been such, they might have appeared otherwise to the said judge of the Prize Court; and it is on this account that the Superior of Ten rescind the decrees of the Inferior Tribunals.

Secondly, the omission to continue the above-cited appeal, can in no way be attributed to the judges of this island; neither is it true that any threats were

made use of towards the above-mentioned attorney. Such a course would have been diametrically opposed to the statutes of my Order; neither would its members have dared to act in such a manner, either against foreigners or the inhabitants my subjects, without incurring a heavy responsibility.

Finally, as it is impossible for my knights, putting aside the order of right, and neglecting the rule of our statutes, to restore to the above-mentioned Roger that which he claims, nothing remains in our power but to grant him the faculty of again prosecuting his right before the above-mentioned Court of Audience as in law so often and earnestly offered to the aforementioned attorney. Nor certainly can it be presumed, that your Majesty in your clemency and justice can desire anything farther. To this conclusion I am the more drawn from the decision of the advocate of the Admiralty himself, for he proposes the granting of letters of reprisal not for any other reason than that he supposed justice had been denied to the said Roger, and that he had been precluded from the remedy of a Court of Appeal. This having been an erroneous conclusion, the entire foundation of the above-mentioned opinion is wholly removed. And it is the more to be hoped that this decision will be approved of by your most serene Majesty, as my necessary subjection to the Apostolic See and to the Roman Pontiff cannot be unknown to your Majesty. From which it necessarily results that so large a sum could not be taken arbitrarily or by force from the parties concerned, without grave reprehension and prejudice, and also without infringing the forms of right as prescribed in the statutes above alluded to.

Confiding therefore in the singular clemency of your Majesty, I entertain a hope that your Majesty, moved by so many and such valid reasons, and considering also the high respect of this my Order towards your Majesty, will be pleased to direct the said Roger not to prosecute his right by other means than by action at law before the said Court of Audience. And that he at length will cease to excite the mind of your Majesty against the innocent by any such vain and unjust complaints; and that he refrain from any more seeking so inopportune and final a remedy of right, as the concession of letters of reprisal against an Order obediently subject to the wishes of your Majesty, and most ready to do anything for the advantage and utility of your Majesty's subjects, as those who daily touch at these islands to re-victual or refit their ships can testify. And now, in my own name, and in that of my

Order, I humbly submit all this to your Majesty by these letters, as I shall also do shortly by a Nuncio, whom I shall send to your Majesty with the necessary documents, in *order more clearly to prove the truth of my statements.*

In the mean time, most submissively kissing your Majesty's most serene hands, I devotedly implore the benignity of the Most High and the Most Great God to grant to your Majesty prosperity in all things.

Given at Malta, on the eighteenth day of February, in the year 1669.

Your Serene Majesty's
Most obedient Servant,
COTTONER.

To the above submissive letter the following reply was sent:

No. IX.

Charles the Second by the Grace of God, of Great Britain, France, and Ireland, King, Defender of the Faith, &c. &c. &c.

To the most illustrious and most high Prince, the Lord Nicholas Cottoner, Grand Master of the Order of Malta. Our well-beloved cousin and friend, Greeting:

Most illustrious and most high Prince, our well-beloved cousin and friend.

Your highnesses letters of —— February, having been delivered to us by the Nuncio selected by your highness for that purpose, we caused Roger Fowke, our subject and Consul in the island of Cyprus, in whose favour we sometimes since addressed your highness, to be summoned before Us, and having well pondered the grounds and reasons in which your highness' replies are based, we judged it right to announce farther to our said subject, that in our opinion the power of appeal to the Supreme Court of Audience offered to him by your highness, after his attorney's previous neglect in the first instance, ought not by any means to be slighted; and that it did not seem to Us there remained, all things considered, any other hope of future

remedy. This we did the more willingly, in order to prove to your highness more clearly, that being so dear, and so highly esteemed by Us, as is your highness personally, and all your knights, that we have preferred accepting any mode of properly settling this affair, rather than, by recurring to any harsher measures, diminish our friendship and affection towards so celebrated an Order. This, our determination, We have also made known by our letters to the Grand Prior of France; and of which testimony may be borne by the bearer of the present, to whom we have thought proper particularly to recommend the urging of your highness, in Our name, to see that such certain and speedy method of justice be established in the affair of our subject as may be lawful, and as was offered; and such as may afford new and sound proof of our ancient amity, and establish and affirm a mutual faith worthy of the Christian name.

In the mean time, We, from our heart, recommend your highness, and all your knights, to the safeguard of the Most Good and Most Great God.

Given from our Palace of Westminster on the 7th day of June, in the year of our Lord 1669, and of our reign the twenty-first.

Your Highness' good Cousin and Friend,
CHARLES REX.

No. X.

Charles by the Grace of God, of Great Britain, France, and Ireland,
King, Defender of the Faith, &c. &c. &c.

To the most eminent Prince, the Lord Nicholas Cottoner, Grand Master of the Order of Malta, our very dear cousin and friend, Greeting:

We apprehend that long since it must have come to the knowledge of your eminence, that a vessel of war of our Royal fleet, named the "Sapphire," went ashore some months ago on the coasts of Sicily; and was so much damaged, that she became entirely unseaworthy. We have however heard, that some guns which belonged to the said ship have been taken to the island of Malta, and there preserved. Having, in consequence, ordered our well-beloved and faithful subject Rudolf Montague, the Master of the Horse

of our most serene Consort, and our Minister near his most Christian Majesty, to send there some fitting person to inquire after any remains of the said wreck, and to depose of them in a manner most advantageous to Us, we, as friends, beg your eminence to be pleased to interpose your authority; so that the persons already sent, or hereafter to be sent by our said Minister, may experience no delays nor impediments, but rather find all favour and due aid from each and every chief of the arsenal, ports and customs, and other officers to whom it may appertain; which we, in a similar case, will endeavour fully to reciprocate to your eminence.

In the mean time we recommend, with all our heart, your eminence to the protection of the Most Good and Most Great God.

Given from our Palace of Whitehall, on the 28th day of November, 1670.

Your Eminence's good Cousin and Friend,
CHARLES REX.

FATA MORGANA.

Not having met with the following account in any English newspaper, of a phenomenon said to have been witnessed quite recently in Germany, I beg to send you a translation from the *Allgemeine Zeitung* (generally quoted in England by the name of the *Augsburgh Gazette*) of February 13, detailing, in a communication from Westphalia, the particulars of a phenomenon, new, perhaps, to your pages, but by no means new to the world.

"WESTPHALIA.—If the east has its *Fata Morgana*, we, in Westphalia, have also quite peculiar natural phenomena, which, hitherto, it has been as impossible to explain satisfactorily, as to deny. A rare and striking appearance of this description forms now the subject of universal talk and comment in our province. On the 22nd of last month a surprising prodigy of nature was seen by many persons at Büderich, a village between Unna and Werl. Shortly before sunset, an army, of boundless extent, and consisting of infantry, cavalry, and an enormous number of waggons, was observed to proceed across the country in

marching order. So distinctly seen were all these appearances, that even the flashing of the firelocks, and the colour of the cavalry uniform, which was white, could be distinguished. This whole array advanced in the direction of the wood of Schafhauser, and as the infantry entered the thicket, and the cavalry drew near, they were hid all at once, with the trees, in a thick smoke. Two houses, also, in flames, were seen with the same distinctness. At sunset the whole phenomenon vanished. As respects the fact, government has taken the evidence of fifty eye witnesses, who have deposed to a universal agreement respecting this most remarkable appearance. Individuals are not wanting who affirm that similar phenomena were observed in former times in this region. As the fact is so well attested as to place the phenomenon beyond the possibility of successful disproof, people have not been slow in giving a meaning to it, and in referring it to the great battle of the nations at Birkenbaum, to which the old legend, particularly since 1848, again points."

J. MACRAY.

ON THE DESTRUCTION OF MONUMENTAL BRASSES.

Any person might naturally be led to suppose, on seeing the many costly and learned works which, within the last few years, have appeared on the subject of monumental brasses, that their value was now fully appreciated, and that all due care was taken to ensure their preservation, or at least prevent their wanton destruction. But, unhappily, such is far from being the case; and though rubbings of brasses are to be found in every antiquarian society, and in the possession of very many private individuals, the churchwardens and other parties on whom their preservation principally depends, are for the most part wilfully blind to their importance as historical memorials, and with impunity allow them to be mutilated or stolen. In many of our country, and I may also add town churches, are these interesting records of the dead stowed away as useless lumber in the vestry, or hidden by some ugly modern pew. The writer wishes to make known, through the medium of your valuable journal, some instances which have fallen under his own observation, in the hope that those who read may make

some exertions to rectify such acts of desecration were they have already occurred, and to prevent their future recurrence.

To begin, then, with the most important as regards the loss incurred by the antiquary, though all show an equal want of good feeling and neglect of things sacred, I will first offer the substance of a few notes taken during a recent excursion to Cobham, Kent. The brasses in this church have long been noted as presenting some of the most interesting early examples of this species of monument, extending from the year 1320 to 1529. They exemplify almost every variety of costume that prevailed during that period, executed with the most artistic skill, and accompanied with the most elegant accessories in the shape of canopies, brackets, and allegorical designs. Imagine, then, the feelings of the antiquary, who, upon approaching the chancel where most of these brasses lie, finds that it is flooded with water! The roof has gradually fallen to decay, and the Earl of Darnley, whose property the chancel is, has refused to repair it. And yet this same nobleman can spend thousands of pounds in adorning his seat, Cobham Hall, the ancient domain of the family, in whose commemoration most of these brasses are laid down. I may also here mention that part of the rood-screen which forms the back of the earl's pew has been glazed, in order, I suppose, to keep out the damp of the chancel, while a portion on the other side has been entirely cut away. This is by far the most flagrant case of neglect which I have ever witnessed; but there are several minor instances which well demand exposure. At Mendlesham, Suffolk, is a fine large figure of John Knyvet, Esq., in armour, almost entirely concealed by a pew passing up the whole length of the brass. Now, for a very little expense, the slab might be removed and laid down again the chancel. At Polstead, in the same county, is a small brass of a civilian and family, date about 1490, hidden in the same manner; and a figure of a priest in the chasuble, lying loose in the vestry. Also at Little Waldingfield is a brass in memory of Robert Appleton and wife, 1526, of which the male figure is covered by a pew. In Upminster Church, Essex, were found, not very long since, during the progress of some alterations, two loose female figures under the flooring of a pew, which are still left to be tossed about in the vestry. One is an elegant figure of a lady in heraldic mantle and horned head-dress, with a dog at her feet, date about 1450, the other about 1630. At St. James's, Colchester, the head of a figure was long left loose, till at last it has been stolen. And, to

conclude, pews have lately been built over two brasses at Margate, one of which is an early example of a skeleton. To these instances, which have fallen under my own observation, I doubt not that every collector can add several others of the same description; but these are sufficient to show the wide extent of the evil, and the necessity of correction.

F. G.

ORIGINAL LETTER OF THE COUNTESS OF BLESSINGTON TO SIR WILLIAM DRUMMOND.

MY DEAR SIR WILLIAM DRUMMOND.—The perusal of your beautiful poem *Odin* has delighted me so much, that I cannot deny myself the gratification of expressing my thanks to its author; and at the same time demanding, why so exquisite a poem remains unfinished?

It is cruel to your readers, and unjust to England, to leave such a work incomplete; it is like the unfinished statues of Michael Angelo, which no hand has ever been found hardy enough to touch, for I am persuaded that we have no living poet who could write a sequel to *Odin*.

Do not think me presumptuous for venturing to give my opinion on poetry; I have studied it from my infancy, and my admiration for it is so enthusiastic, that I feel more strongly than I can reason on the subject. With this passion for poetry, you can more easily imagine than I can describe, the delight that *Odin* gave me. I have copied many passages from it in my Album under different heads: such as Contemplation; Love of Country; Liberty; Winter; Morning; Meditation on a Future State; Immortality of the Soul; Superstition; Vanity of Life; Jealousy; and many others too numerous to mention. And they are of such transcendent merit, as to be above all comparison, except with Shakspeare or Milton. In the sublimity and harmony of your verses, you have equalled, if not surpassed, the latter; and in originality of ideas and variety, you strikingly resemble the former; but neither call boast of anything superior to your beautiful episode of "Skiold and Nora."

Hitherto, my dear Sir William Drummond, I have looked on you as one of the first scholars and most elegant prose writers of the age; but, at present, permit me to say that I regard you as the *first poet*.

When I have been charmed with the productions of writers, who were either personally unknown to me, or unhappily dead, how have I regretted not being able to pour out my thanks for the pleasure they had afforded me: in this instance I rejoice that I have the happiness of knowing you, and of being able to express, though feebly, the admiration with which your genius inspires me; and of offering up my fervent prayers that you may be long spared to adorn and do honour to the age which is, and ought to be, proud to claim you. In writing to you I abandon my pen to the guidance of my heart, which feels with all the warmth for which *Irish hearts* are so remarkable. A *poet* can understand and pardon this Irish warmth, though a *philosopher* might condemn it; but in addressing you, I forget that I am writing to one of the most eminent of the last class, and only remember that I am talking of *Odin* to the most admirable of the first.

I am at present reading *Academical Questions*, which, if *I dare* take possession of, should not again find their way to Chiaja; *Odin* I shall most *unwillingly* resign, as I find it belongs to Lady Drummond; but if you have any other of your works by you, will you have the goodness to lend them to me? Pray name what day you will dine with us, accompanied by Mr. Stewart, to whom I owe my best acknowledgments for having lent me *Odin*.

Believe me,

My dear Sir William Drummond, to be

With unfeigned esteem,

Sincerely yours,

MARGUERITE BLESSINGTON.

Villa Gallo, April 24th, 1825.

The above Letter is copied from the original in my possession.

A. G.

Edinburgh.

Minor Notes.

The late Judge Talfourd.—Some years since I ventured to request information as to the proper way of pronouncing the *Elia*, from the talented and kind-hearted Judge Talfourd, whose days have just been brought to a close under such truly awful circumstances. The ready reply which he gave to an unknown inquirer, whilst it illustrates the courtesy and cordiality of his character, may prove interesting to your readers.

Temple, June 15, 1838.

Sir,

I have the honour to acknowledge the receipt of your letter of the 11th, and to express my pleasure at finding that you sympathise with me in genial admiration of the delightful person to whom it refers. All I know respecting the signature of *Elia* will be found at p. 65 of the second volume of Lamb's Letters. It was the real name of a coxcombical clerk thirty years dead, whom Lamb remembered at the South Sea House, and prefixed to his first essay (which was on the "Old South Sea House") in the *London Magazine*. The editor afterwards used it to distinguish Lamb's articles, and he finally adopted it. The *i* is short (*Elĭa*). It is an Italian name.

I have the honour to be,

Sir,

Your obedient and faithful servant,

T. N. TALFOURD.

C. W. B.

Authors' Trustee Society.—Authors, as a class, are perhaps the most unfit men in the world to make the most of their own property; and were they ever so competent, it will often happen that their works do not attain to any great value as copyrights till after the poor author is laid in his grave. It is then, when his family are sometimes exposed to severe distress, that more

favourable terms might be obtained from publishers; but there is no one left who is capable of acting for the benefit of the widow or children.

A Society might be formed to take charge as trustees of the property of an author in his works, to make engagements with booksellers for the privilege of publishing future editions as they may be required, and to take care that the *honorarium* for each edition be duly paid into the hands of the person who is entitled to receive it.

No expense would attend the formation of such a Society. Its meetings could be held at scarcely any cost. The advertisements, to announce from time to time what works are open for offers from printers, booksellers, and publishers, would amount to a very small sum in the course of the year—I dare say the Editor of "N. & Q." would insert them gratuitously. But, if necessary, a small percentage on the fees paid would cover all the disbursements of the Society.

L. P. K.

The Old Clock at Alderley.—In the investigation of this very old and curious piece of mechanism by the Rev. Joseph Bockett, in the year 1833, an inscription was found signifying that it was presented to the church of Alderley by the great Sir Matthew Hale. It was copied, *verbatim et literatim*, by the said reverend gentleman, and is as follows:

"This is the Guift of the Right Honourable the Lord Cheif Justice Heale to the Parish Church of Alderly. John Mason, Bristol, Fecit, Novēm. 1st 1673."

It appears, by this inscription, to have been presented on his birth-day; which, from his tomb, was found to be November 1. Alderley is the family place of the Hale family to this day.

JULIA R. BOCKETT.

Southcote Lodge.

The Olympic Plain, &c.—The success which has attended the excavations of Dr. Layard at Nineveh, has rekindled the curiosity of the antiquary and

the classical scholar with regard to the buried remains of ancient Greece and Rome:

"The Tiber at Rome," Dodwell says, "is supposed to contain a vast assemblage of ancient sculpture; and thoughts are entertained of turning its course, in order to explore its hidden treasures."

The same distinguished traveller remarks (*Classical and Topog. Tour through Greece*) that—

"It was a favourite plan of the learned Winkelmann to raise a subscription for the excavation of the Olympic plain. If such a project should ever be consummated, we may confidently hope that the finest specimens of sculpture, as well as the most curious and valuable remains, will be brought to light. No place abounded with such numerous offerings to the gods, and with such splendid and beautiful representations in marble and in bronze."

ALPHA.

Oxford.

Electric Telegraph.—Might not the telegraph be made serviceable in remote country districts, by connecting detached residences with the nearest police station; to which an alarm might be conveyed in cases of danger from thieves or fire? There are many who would willingly incur the expense for the sake of the security, and no doubt all details could be easily arranged.

THINKS I TO MYSELF.

Irish Law in the Eighteenth Century.—I send, for the information of the readers of "N. & Q.," the following extract from Reilly's *Dublin News Letter*, Aug. 9, 1740:

"Last week, at the assizes of Kilkenny, a fellow who was to be tried for robbery not pleading, a jury was appointed to try whether he was wilfully mute, or by the hands of God; and they giving a verdict that he was wilfully mute, he was condemned to be pressed to death. He accordingly suffered on Wednesday, pursuant to his sentence, which was as follows: that the criminal shall be confined in some low dark

room, where he shall be laid on his back, with no covering except round his loins, and shall have as much weight laid upon him as he can bear, and more; that he shall have nothing to live upon but the worst bread and water; and the day that he eats, he shall not drink; and the day that he drinks, he shall not eat; and so shall continue till he dies."

Is it to be believed that, so late as the 1740, such barbarity (to call it nothing worse) was practised according to law within the limits of Great Britain and Ireland? I would be glad to hear from some correspondent upon the subject.

ABHBA.

Gravestone Inscriptions.—In the churchyard of Homersfield (St. Mary, Southelmham), Suffolk, was the gravestone of Robert Crytoft, who died Nov. 17, 1810, aged ninety, bearing the following epitaph:

"Myself.

As I walk'd by myself I talk'd to myself,
And thus myself said to me,
Look to thyself and take care of thyself,
For nobody cares for thee.
So I turn'd to myself, and I answer'd myself
In the self-same reverie,
Look to myself or look not to myself,
The self-same thing will it be."

This stone was some years since taken up, and has remained standing in the church tower. I know not whether the lines be original, but I have never seen them elsewhere.

The following were and may be now in St. Stephen's churchyard, Ipswich, on the stone of one Stephen Manister, clerk to Mr. Baron Thompson, who died in 1731, and by his will desired the following words to be there inscribed:

"What I gave I have, w^t I spent I had,
What I left I lost for want of giving it."

G. A. C.

Minor Queries.

Paintings of Our Saviour.—In Mrs. Jameson's *Legends of the Monastic Orders*, it is stated that "The painter, Andrea Vanni, was among the devout admirers of St. Catherine;" and that "among his works was a head of Christ, said to have been painted under the immediate instruction of St. Catherine; representing the Saviour as she had, in her visions, beheld him. Unhappily this has perished." Also, on the authority of Mr. Sterling, that St. Juan de la Cruz, the friend of St. Theresa, "on one occasion when the Saviour appeared to him, made an uncouth sketch of the divine apparition; which was long preserved as a relique in the Convent of the Incarnation at Avila."

Can any of your readers supply particulars of, or references to, other similar portraitures, especially of any still in existence?

J. P.

Heraldic.—Can any of your heraldic correspondents inform me to what families the following coat of arms belongs:—Gules, a fess sanguine between three trefoils slipped proper? There is in this the not very frequent occurrence of a coloured charge upon a coloured field. The only similar instance I now remember is Denham, Suffolk: Gules, a cross vert.

LOCCAN.

Dedication of Kemerton Church.—The church at Kemerton, Gloucestershire, was, until a few years ago, marked by the authorities with a blank, just as the church of Middleton ("N. & Q.," Vol. v., p. 372.); but it has now been discovered, it would appear, to have been dedicated to *St. Nicholas*. How, or where?

I. R. R.

Consolato del Mare.—The maritime code of the Venetians derived from Barcelona, observed also by the Genoese and Pisans, was called "Consolato del Mare," A.D. 1200. Why was it so called?

R. H. G.

Consonants in Welsh.—It has often been asserted that the Welsh language is remarkable for the number of its consonants. Can any of your readers acquainted with that language inform me whether there is a larger proportion of consonants in Welsh than in English? Messrs. Chambers, in a recent number of their *Repository*, say:

"On the road to Merthyr, we heard a drunken Welshman swear; oh for words to describe the effect! His mouth seemed full of consonants, which cracked and cracked, and ground and exploded, in an extraordinary way," &c.

Is this a true representation of the case?

J. M.

"Initiative" and "Psychology."—

"... a previous act and conception of the mind, or what we have called an *initiative*, is indispensably necessary, even to the mere semblance of method."—Coleridge's *Treatise on Method*.

Am I to understand from this sentence that this word was an original adaptation of Coleridge's? If not, when was it first introduced, and by whom?

In the same treatise, Coleridge employs the word *psychological*, and apologises for using an *insolens verbum*. Was this the first occasion of the familiar use of this word? I find *psychology* in Bailey.

C. MANSFIELD INGLEBY.

Birmingham.

Atonement.—Can you or any of your readers inform me when the word "atonement" first came into use, and when it was first applied to the work of reconciliation wrought by our Lord Jesus Christ? It is used once only in the New Testament (Romans v. 11.), and there the word does not quite convey the meaning of the original καταλλαγή. The etymology of it seems so purely English, that one would hardly expect to find the present use, or rather adaptation, of the word, so very modern as it appears to be.

J. H. B.

Sir Stephen Fox.—Chambers' *Journal*, No. 515., Nov. 12, 1853, p. 320., says:

"Charles James Fox, who died in 1806, at the age of fifty-seven, had an uncle who was paymaster of the forces in 1679, the year of the battle of Bothwell Bridge, and his grandfather was on the scaffold with Charles I."

After consulting several books on the subject, I find that this latter statement is just possible; but I cannot learn under what circumstances Sir Stephen Fox accompanied Charles I. to the scaffold. Can any of your readers give me the desired information?

N. J. A.

"*Account of an Expedition to the Interior of New Holland*."—Can any one tell me the name of the writer of a book with the title I have here given? It was edited by Lady Mary Fox, and published, in one vol. 8vo., by Bentley, in the year 1837. I may be mistaken, but I think I can recognise the style of a well-known writer.

ABHBA.

Darwin on Steam.—Where are the prophetic lines by Dr. Darwin to be found, commencing:

"Soon shall thy power, unrivalled *steam*, from far
Drag the slow barge, and urge the rapid car."

UNEDA.

Philadelphia.

Scottish Female Dress.—When did ladies cease to use hair-powder, face-patches, hoops, and high-heeled shoes? An old lady of about seventy recollects perfectly that her mother wore then all (so, she thinks, did her visitors, who came to a dish of tea) except the hoop, which was reserved for grand occasions. On the introduction of the new-fangled low-heeled shoes, she recollects her mother tottering about on them like a novice on skates, and groaning with pains in her legs, a victim to a change of fashion! At this time, she adds, was in every-day use the *milk tally* and *bread-nick-stick*. The

first, that represented in Hogarth's picture; the second, a stick about a foot long, four-sided, on which each loaf was registered by a notch or nick in the stick; the servant kept a similar *nick-stick* as a check on the baker; but during the flirtation, common *then* as *now* on such occasions, the old lady slyly remarks, the baker often gallantly nicked the check-stick, as well as his own, with a couple of notches for one. Hence, possibly, the decline and fall of the use of this wooden system of book-keeping by double notch. Is any date assigned to the ceasing of the practice of using the wooden tally and nick-stick?

C. D. LAMONT.

Greenock.

"The Innocents," a Drama.—Who is the author of a small volume of poetry, published anonymously about the year 1825, and which is very favourably noticed in the *New Monthly Magazine* for January, 1826, vol. xviii. The title of the volume is, *The Innocents, a Sacred Drama; Ocean and the Earthquake at Aleppo, Poems.*

S. N.

Waugh of Cumberland.—Can you inform a Waugh, the family arms of Waugh of Cumberland; to whom they were first granted, and why?

A SUBSCRIBER.

Norton.—Wanted, the origin of, or the sources of information respecting, this name, the appellation of so many villages, &c. in Oxfordshire. A family of the name of Norton, after residing in those districts for many generations, have long moved to London, and are not possessed of the information sought by the inquirer.

N.

De La Fond.—Can any of your readers explain the following inscription on an engraving by P. Lombart of De La Fond, and its application?

"In effigiem De La Fond, Galli
Festivissimi, apud Batavos, Ephemeridum Historicarum Scriptoris,
Distichon.

Mille oculis videt hic Fondus mille auribus audit;
Plus audit naso, plus videt ille, suo."

A. F. B.

Diss.

"Button Cap."—In the north of Ireland there is a belief that just before a war breaks out, the spirit of an ancient warder of Carrickfergus Castle is heard examining the arms stored there, and, if they are not entirely to his satisfaction, he shows his displeasure by making an awful clatter among them. Has old "Button Cap" (for that is his name) been inspecting the arms lately? What is the legend connected with him? If I mistake not, he is said to be the spirit of a warder who was drowned in the castle well in the reign of Elizabeth.

FRAS. CROSSLEY.

Cobb Family.—Richard Cobb, Esq., and his wife Joan, were painted by Sir Peter Lely between 1641 and 1680. These portraits are now in my possession. Elizabeth Cobb, granddaughter of the above, married, *circa* 1725, the Rev. Thos. Paget, at that time Fellow of Corpus Christi, Oxford. Thus, Richard Cobb would be born *circa* 1634, his son *circa* 1667, and his granddaughter *circa* 1700. I shall be obliged for any clue to the arms, residence, &c. of this Mr. Cobb.

ARTHUR PAGET.

Prince Charles' Attendants in Spain.—The assistance of your antiquarian correspondents is particularly requested towards the making out of a complete list of all the persons who were in attendance on Prince Charles on his romantic visit to Spain. Of course it is well known that the Prince and Buckingham started accompanied only by Sir Francis Cottington, Endymion Porter, and Sir R. Graham. Of the members of his household who afterwards joined him, the principal of course are also well known. But of the gentlemen and grooms of the Privy Chamber, pages, &c., I have been unable to discover a complete list, although notices of individuals are occasionally met with. Any references to such notices are much desired.

E. O. P.

Sack.—What wine was this? Is it still existing and known to the wine trade by any other name? If so, when and why was the name changed?

FALSTAFF.

Minor Queries with Answers.

Ralph Ashton the Commander.—In an ancient record I met with a year or two ago (two centuries old, I suppose), the name of a Ralph Ashton, "Commander," occurred. The record related to Lancashire, and it spoke of "Isabella, the wife of Ralph the Commander." I believe that a gentleman of this name was commander of the Lancashire forces under the Commonwealth. Will any of your readers oblige me (should they have access to any ancient pedigree of the Ashton family) by saying whether any mention is made of this "Isabella," and what her name was before her marriage to Ralph the Commander?

JAYTEE.

[The pedigree of the family of Ashton, or Assheton, of Middleton, is given in Baines's *Lancaster*, vol. ii. p. 596., which states that Ralph Ashton, Esq., M.P. for Clithero, temp. Chas. I., for the county, 16 Chas. I., died 17th Feb. 1650, married Elizabeth, daughter of John Kaye of Woodsome, co. York. In old documents Isabella and Elizabeth are used for one and the same name.]

Christopher Hervie.—M. ZACHARY (Vol. ix., p. 184.) obligingly replies to my question as to the quotation—

"One while I think, and then I am in pain,
To think how to unthink that thought again."

Would he be kind enough to say where I may find any notice of Christopher Hervie? as I have been unable to find mention of him or his work in any biography to which I have access.

W. M. M.

[A biographical notice of Christopher Harvie, or Harvey, is given by Anthony à Wood in his *Athenæ Oxonienses*, vol. iii. p. 538. (Bliss), from which it appears he was "a minister's son of Cheshire, was born in that county, became a batler of Brasen-nose College in 1613, aged sixteen years, took the degrees in Arts, that of Master being completed 1620, holy orders, and at length was made vicar of Clifton in Warwickshire." Wood, however (*Ath. Oxon.*, vol. i. p. 628.), attributes *The Synagogue* to Thomas Harvey, first Master of Kington School in Herefordshire. "There can be no doubt," adds Mr. Bliss, "but a Ch. Harvie was the author of this poem, particularly as Walton contributed some commendatory verses to it, which were repaid by another copy prefixed to the *Compleat Angler* by Harvie; but whether this was Christopher Harvey, the vicar of Clifton, or some other, remains to be decided. If it was, it is at least singular that Wood, who was so inquisitive in these matters, should

have been ignorant of the circumstance." Harvey died before the 4th Sept. 1663, as on that day Samuel Bradwall was instituted to the vicarage of Clifton, void by the death of the last incumbent.—See Sir John Hawkins' edition of *The Complete Angler*, p. 186.; also "N. & Q.," Vol. vi., pp. 463. 591.]

Dannocks.—Hedging-gloves made of whit-leather (untanned leather), and used by workmen in cutting and trimming fences, are called in this part of Norfolk *dannocks*. Can any of your correspondents say whence the word is derived?

J. L. S.

Edingthorpe.

["It should rather be *Dornecks*," says Forby, "which is the proper Flemish name of *Tournai*, a Frenchified name, long since universally substituted. Two hundred years ago it was celebrated for its coarse woollen manufactures, principally of carpets and hangings, mentioned in some of our old comedies. Probably thick gloves were another article of importation. Our modern *dannocks*, indeed, are of thick leather, and made at home by our own glovers. Dan. *dorneck*."]]

Brass in All Saints, Newcastle-upon-Tyne.—In the Church of All Saints, Newcastle-upon-Tyne (an erection dating at some period of the Protestant dark ages), there is a magnificent Flemish brass, of which the incumbent refuses to allow a rubbing to be taken, on the ground that the process would *injure* it! Can any of your correspondents tell me if it has been engraved, and where?

J. H. B.

[There is a beautiful representation of the very curious plate of brass inlaid on the table monument of Roger Thornton, the celebrated patron of Newcastle-upon-Tyne, temp. Henry IV., and still preserved in the Church of All Saints in that town, engraved in Brand's *History of Newcastle-upon-Tyne*, vol. i. p. 382. Mention is also made by that author of another work containing it, entitled *Monuments in the Churches of St. Nicholas and All Saints*.]

Imperfect Bible.—A Bible has lately come into my possession in an imperfect state. It is in black letter, 4to., with the capitals commencing the chapters in Roman letters. I wish to know the date and printer. It begins at fol. 7., at the end of the 6th verse of xvth chapter of Genesis, "counted that to him for righteousness." There are a number of engravings representing the instruments used in the temple and tabernacle, at fol. 36. 38. 40. 62. 160. &c. There is no date, but I think it is about 1590 or 1600.

AN IGNORAMUS ON THE SUBJECT.

[This imperfect Bible is one of the very numerous series of editions of the Genevan or Puritan version, commonly called the Breeches Bible. It is not a 4to. but a pot folio, having six leaves to the sheet or signature, "Imprinted at London by the Deputies of Christopher Barker, printer to the Queen's most excellent Maiestie, Anno Dom. 1595. *Cum privilegio*." Our correspondent's copy wants the title and preface (three leaves), six leaves of Genesis, the title to the N. Testament, and at the end eleven leaves, including the two tables. The translation may be identified by the last word of 1 Cor. vi. 9., or by 1 Tim. i. 10. There is another edition by the same printer, and of similar size, in the year 1602; but the title to the second part has "conteineth," instead of "conteining."]

The Poem of "Helga."—At what date was this poem, by Herbert, written?

SELEUCUS.

[This poem was commenced, as the author states in his preface, "soon after the publication of the translations which he made from the relics of ancient Icelandic and Scandinavian poetry," issued in 1805.]

"Merryweather's Tempest Prognosticator."—I wish to know if there be a book published entitled "Merryweather's Weather Prognostication?" I think, if I mistake not, I saw it among the nautical instruments, &c. in the naval department of the London Exhibition in 1851. I cannot find here if there be any such book extant.

J. T. C.

Dublin.

[The work is entitled *An Essay explanatory of the Tempest Prognosticator in the Building of the Great Exhibition for the Works of Industry of all Nations*, read before the Whitby Philosophical Society, Feb. 27, 1851, by George Merryweather, M.D., the Designer and Inventor: London, John Churchill, Princes Street, Soho, 1851.]

Edward Spencer's Marriage.—Can any reader supply me with particulars of the marriage of Edward Spencer of Rendlesham, co. Suffolk, and Grosvenor Square, who lived in the early part of the last century, and whose daughters married the Duke of Hamilton and Sir James Dashwood?

CHARLES BRIDGER.

Keppel St., Russell Sq.

[The following entry is given in Davy's Suffolk Collections (Add. MSS. 19,097., p. 272.): "Edward Spencer, son of John Spencer, Esq., ob. 1718. Edward, now living at Naunton Hall, is a barrister-at-law. He married Anne, the only daughter of William Baker of Layham, clerk, by whom he had issue Henry Spencer, who died an infant, and Ann Spencer, their only daughter, and now living." This extract is copied from Hawes's MSS., the date of which, unfortunately, is not given.]

Yew-tree at Crowhurst.—Could any of your readers inform me of the age of the yew-tree in Crowhurst Churchyard, Sussex?

C. BOWMER.

[Decandolle assigns an antiquity of fourteen and a half centuries to this remarkable yew. See a valuable article on the "Age of Trees" in our fourth volume, p. 401.]

Replies.

THE ELECTRIC TELEGRAPH IN 1753.

(Vol. viii., p. 364.)

As no reply has yet been given to the Query of INQUIRENDO as to who was C. M., who described in the *Scots Magazine*, vol. xv. p. 73., as long since as 1753, the electric telegraph, and as the article itself is one of great interest in the history of an invention which is justly considered one of the greatest wonders of our own times, I send a transcript of it, by way of satisfying the natural curiosity of many readers who may not have an opportunity of consulting it in the magazine in which it originally appeared, and also because the doing so may stimulate farther inquiry, and lead to the discovery of its ingenious writer, C. M. of Renfrew.

"Renfrew, February 1, 1753.

"Sir,

"It is well known to all who are conversant in electrical experiments, that the electric power may be propagated along a small wire, from one place to another, without being sensibly abated by the length of its progress. Let, then, a set of wires, equal in number to the letters of the alphabet, be extended horizontally between two given places, parallel to one another, and each of them about an inch distant from that next to it. At every twenty yards' end let them be fixed in glass, or jeweller's cement, to some firm body, both to prevent them from touching the earth, or any other non-electric, and from breaking by their own gravity. Let the electric gun-barrel be placed at right angles with the extremities of the wires, and about an inch below them; also let the wires be fixed in a solid piece of glass at six inches from the end; and let that part of them which reaches from the glass to the machine have sufficient spring and stiffness to recover its situation after having been brought in contact with the barrel. Close by the supporting glass let a

ball be suspended from every wire, and about a sixth or an eighth of an inch below the ball place the letters of an alphabet, marked on bits of paper, or any other substance that may be light enough to rise to the electrified ball, and at the same time let it be so contrived that each of them may reassume its proper place when dropt. All things constructed as above, and the minute previously fixed, I begin the conversation with my distant friend in this manner:—Having set the electrical machine a-going, as in ordinary experiments, suppose I am to pronounce the word *sir*; with a piece of glass, or any other *electric per se*, I strike the wire *s*, so as to bring it in contact with the barrel, then *i*, then *r*, all in the same way; and my correspondent, almost in the same instant, observes these several characters rise in order to the electrified balls at his end of the wires. Thus I spell away as long as I think fit, and my correspondent, for the sake of memory, writes the characters as they rise, and may join or read them afterwards as often as he inclines. Upon a signal given, or from desire, I stop the machine, and taking up the pen, in my turn I write down whatever my friend at the other end strikes out.

"If anybody should think this way tiresome, let him, instead of the balls, suspend a range of bells from the roof, equal in number to the letters of the alphabet, gradually decreasing in size from the bell *a* to *z*; and from the horizontal wires let there be another set reaching to the several bells; one, viz., from the horizontal wire *a* to the bell *a*, another from the horizontal wire *b* to the bell *b*, &c. Then let him who begins the discourse bring the wires in contact with the barrel, as before, and the electric spark, breaking on bells of different size, will inform his correspondent by the sound what wires have been touched. And thus, by some practice, they may come to understand the language of the chimes in whole words, without being put to the trouble of noting down every letter.

"The same thing may be otherwise effected. Let the balls be suspended over the characters, as before, but instead of bringing the ends of the horizontal wires in contact with the barrel, let a second set reach from the electrificator, so as to be in contact with the horizontal ones; and let it be so contrived, at the same time, that any of them may be removed

from its corresponding horizontal by the slightest touch, and may bring itself again into contact when left at liberty. This may be done by the help of a small spring and slider, or twenty other methods which the least ingenuity will discover. In this way the characters will always adhere to the balls, excepting when any of the secondaries is removed from contact with its horizontal; and then the letter at the other end of the horizontal will immediately drop from its ball. But I mention this only by way of variety.

"Some may perhaps think that, although the electric fire has not been observed to diminish sensibly in its progress through any length of wire that has been tried hitherto; yet, as that has never exceeded some thirty or forty yards, it may be reasonably supposed, that in a far greater length it would be remarkably diminished, and probably would be entirely strained off in a few miles by the surrounding air. To prevent this objection, and save longer argument, lay over the wires, from one end to the other, with a thin coat of jeweller's cement. This may be done for a trifle of additional expense; and as it is an electric *per se*, will effectually secure any part of the fire from mixing with the atmosphere.

"I am, &c.,

"C. M."

Surely among the numerous readers of "N. & Q." some one will be found to tell us who C. M. was.

J. Y.

FACTITIOUS PEDIGREES: DIXON OF BERSTON.

(Vol. ix., p. 221.)

The inquiry of MR. R. W. DIXON is one that I feel should not remain unanswered; and a few circumstances that I can detail will be sufficient to prove that his brother Mr. J. H. Dixon only exercised a just discretion in rejecting the information offered by William Sidney Spence.

On 4th March, 1848 (a few months, therefore, earlier than the letter which has been quoted), a communication was forwarded to me by Mr. Spence so similar, as to warrant the supposition that a set form was kept on hand to be copied in different applications with such variations as each case might demand, though even then a discrepancy has crept in that would render the evidence suspicious.

The first paragraph is the same, except that Mr. Spence states he was engaged by the "*widow of Sir John Cotgreave,*" instead of the "*sister.*"

In the second the pedigree is said to be the "work of Randle Holme, 1672, from documents by William Camden," instead of the work of "the great Camden." Monsons, of course, are substituted instead of Dixons. Four generations from Sir John Monson temp. Edward III., instead of five generations from Ralph Dixon temp. Henry VI. And this Sir John is slain fighting under Lord Audley at the battle of Poitiers, 1356, as a counterpart to Ralph Dixon, slain at the battle of Wakefield, 1460.

The third paragraph is word for word the same, except that, to be consistent with the descents, four shields with sixteen quarterings are offered instead of five shields with twelve.

Lady Cotgreave is to vouch for the authenticity instead of Miss Cotgreave.

The quarterings promised in the next paragraph are only partially the same, and the conclusion merely differs in wording by the substitution of the names of "Sir John Monson" and "his mother Elinor, daughter and coheir of Sir John Sutton, de Sutton and Congleton," in place of "Ralph Dixon and his mother Maude, daughter and coheiress of Sir Ralph Fitz Hugh," &c.

I acknowledge that from the first I did not believe a word of this ingenious tale; in fact I was rather an unfortunate subject for Mr. Spence's purpose, having for years made the early history of my family my especial study; but having a friend resident at Birkenhead (a clergyman), I applied to him out of curiosity to find out something of my informant, who at least had shown some ingenuity. The answer was by no means in favour of Mr. Spence; and one fact was decidedly ascertained, that he neither lived nor was known in Priory Place, whence his letters were dated. I answered his letter, declining

to give the remuneration of five pounds which he had asked; and on taxing him with the falsity of his residence, he said he had his letters left there for convenience.

MR. DIXON must now himself judge of the credit to be placed on the informant. As for the information in my own case, it bore internal proofs of being worthless; and if such a pedigree as is described should exist, I feel assured it is not the work of Camden, but more probably of a cotemporary, of rather discreditable notoriety among genealogists, of the name of Dakyns.

MONSON.

Gatton Park.

I can give no information on the Dixon family, but having some years ago received a letter from the same Mr. Spence, with an account of my own family, every word of which is not only entirely without authority, but a gross invention opposed to the facts, I thought MR. DIXON might like to know that Mr. Spence founds the romance in question on a "Pedigree of Cotgreave de Hargrave, the work of the celebrated Randle Holme, anno 1672, from documents compiled by that learned antiquary William Camden, in the year 1598," evidently the same veracious authority with that mentioned in the letter to MR. DIXON.

EV. PH. SHIRLEY.

Eatington Park, Stratford-on-Avon.

The following note will, I think, satisfy your correspondent R. W. DIXON that the letter of William Sidney Spence which you inserted for him was an imposture, and that Mr. J. H. Dixon was not without reason in rejecting the information offered.

A friend of mine, assuming descent from "a good old" family of the same name, which he was unable to prove, received, about the same time as MR. DIXON did, a communication from Mr. William Sidney Spence to precisely the same effect, and having no cautious brother to consult, readily took the bait, and paid some pounds for a specious pedigree, setting forth his "distinguished progenitors," with their armorial bearings, &c., purporting to be authenticated as a true copy of one in Miss Cotgreave's possession under

that lady's own hand. The information so received being subsequently submitted to a genealogical friend, some doubt was excited of its genuineness in proving too much; and an inquiry, which I made through a correspondent in Cheshire, tending to confirm this suspicion, a reference was had to Miss Cotgreave herself, when it turned out that the whole was an ingenious fabrication. Mr. Spence was then dead, and my friend, whose name I do not mention, as the subject is rather a sore one, was obliged to be content with the practical experience he had bought.

The probability is, that whenever Mr. Spence read in Burke's *Landed Gentry* that Mr. A. or Mr. B., in preference to being considered as the founder of a new family, supposed himself, or wished to be supposed by others, to be descended from an old stock of the same name, he kindly offered to supply the desired information, and was ready to execute a pedigree to order.

G. A. C.

[The Editor has been informed by a person on whose accuracy he can rely, that a lady who received a letter from Mr. Spence offering certain information respecting his family taken from the Cotgreave pedigree, and who imprudently sent money for the same, got nothing but the most absurd rubbish in return, and having been induced to make inquiries into the subject, was fully satisfied that the whole thing was a fraud.]

LICENCES TO CRENELLATE.

(Vol. ix., p. 220.)

The subjoined list of names and places will supply MR. PARKER with the *counties* of all the places named in his inquiry, except two in which I suspect some error. If farther references to authorities are desired, they will be given with pleasure in reply to a private application, but would crowd your pages inconveniently.

1. Cokefield for Melton—Cokefeud for Moulton, Suffolk.
2. Grisnak for Molun—Query this?

3. Langeton for Newton in Makerfield.—L. for Newton Hall or Castle, the head of the Palatine Barony of Newton, in Lancashire.
4. Esselynton for Esselynton—E. in Northumberland.
5. Trussel for Cubleston—C. in Staffordshire.
6. De la Beche for De la Beche—De la Beche Castle. Aldworth, Berks.
7. The same for Beaumes—Beaumys Castle, Shinfield, Berks.
8. Cobham for Pringham—P. *alias* Sterborough Castle, Surrey.
9. The same for Orkesdene—O. in Kent.
10. "Burghchier" for Stanstede—Bourchier for Stansted, Essex.
11. Dalham for "Credonio"—"Fortalicium in loco *de* Crodonio." Printed Cal. Rot. Pat. p. 143.
12. Lengleys for Heyheved—Highhead Castle, in Cumberland.
13. Aeton for Chevelyngam—Heton for Chillingham, Northumberland.

GEO. O.

Sedbury Park, Chepstow.

There can, I think, be little doubt that *Stansstede*, in MR. J. H. PARKER'S list, is Stanstead Hall, near Halstead in Essex. I have never seen Stanstead Hall, but about a month since I was in company with the late occupant; from whom I learned, in casual conversations, that it was an ancient house, with moat and fortifications. In addition to this I may state, that there are monuments in the old church (St. Andrew) of Halstead to some of the Bouchier family. These facts, taken together, seem to fix the locality with sufficient precision. One of the monuments just referred to is a brass, commemorating Sir Bartholomew Bouchier and his two wives; which, when I copied it in 1847, was under the flooring of a pew in the south aisle. He died May 8, 1409; and was previously the possessor of Stanstead Hall:

so I learn from my own MS. Catalogue of brass rubbings in my collection, but I am not able to give any better reference to authenticate the statement.

W. SPARROW SIMPSON.

Heyheved, mentioned in MR. PARKER'S list, is *Highhead Castle* in Cumberland. In the reign of Edward II. it was a *peel house* (pelum de Heyheved) possessed by Harcla, Earl of Carlisle. In modern times it became the property of a family named Richmond, one of whom erected the present house, after a plan by Inigo Jones. But he died before it was finished, leaving co-heirs, who quarrelled about the partition of the estate, and actually put a hedge through the centre of the house. Eventually one-half came into the hands of Lord Brougham, who is understood to have purchased the other, and will probably restore the whole.

K.

NEWSPAPER FOLK LORE.

(Vol. vi., pp. 221. 338. 466.; Vol. ix., pp. 29. 84.)

It may be instructive to collate the four stories recorded in the above references, and compare them with a case that was brought before Mr. Jardine at Bow Street Police Court; and which was reported in *The Times* for February 22, 1854. Let the following extract suffice: it is descriptive of the operations of extracting a worm from the body of one Harriet Gunton, by a female quack of the name of Jane Browning:

"I laid myself on the bed as she desired, and she told Mrs. Jones to hold my mouth to prevent my breathing. Mrs. Jones held me from behind, and nearly suffocated me. She kept me down, while the prisoner tried to get the worms out of my body with her hands. This lasted for about a quarter of an hour, and caused me dreadful pain. The prisoner told me that one of the worms had bit her finger, and slipped away again, and she could not get at it. She tried a second time, and said the worm had bit her again. I then begged her to leave off, if she could not succeed in getting it away; for I believed I should die under the operation. She tried a third time, and said she had broken two skins

of it, which would prevent it getting up my body. ... She then put her hand under the clothes. I felt something touch me like a cloth, and she drew away her hand; throwing something into the pan, which sounded with a heavy splash. She said she had been trying at it all night, and had got it away at last."

Mr. Robert Biggs, the medical attendant, pronounced the "reptile" to be a fine conger eel, which he believed had often done duty in the same way.

C. MANSFIELD INGLEBY.

Birmingham.

It would be well if every popular error were hunted down, as your correspondents have done in the case of the snake-vomiting at Portsmouth. The public need to be told, that no animal can live in the alimentary canal but the parasites which belong to that part of the animal economy. Of these the *Lumbricus intestinalis* is the largest, and is discharged by children even of the size mentioned in the case of Jonathan Smith.

Two years ago I met with a curious illustration of the popular ignorance of that branch of natural history which treats of our own reptiles, as well as of the mode of growth of a popular marvel. During the hot weather of the summer before last, I was asked by a respectable farmer, if I had seen the "serpent" which was lately killed in an adjoining parish. "Serpent!" I replied; "I suppose you mean some overgrown common snake—perhaps a female full of eggs?" "Well, it might have been a snake at first, but it was grown into a serpent; and pursued a boy through the hedge, but was fortunately encountered and killed by the father."

It is a moot point, whether the parasites of animals are engendered or not within the body. In the case of the bots of horses, they are known to be the larvæ of a fly which deposits its eggs on the skin; from whence they are licked off, and conveyed into the animal's stomach, where they are hatched and prepared for their other metamorphoses.

I believe the only parasite taken in with water in tropical climates is the Guinea Worm; an animal which burrows under the skin of the arms or legs, and is extremely difficult of extraction, and often productive of great

inconvenience. But whether the egg of this worm be taken into the stomach, and conveyed by the blood into the limbs, there to be hatched into life, or whether it enter through the pores of the skin, I believe is not determined.

The popular delusion respecting the swallowing of young snakes, and of their continuance in the stomach, is a very old one, and is still frequent. A medical friend of mine, not long since, was called on to treat a poor hysterical woman, who had exhausted the skill of many medical men (as she asserted) to rid her of "a snake or some such living creature, which she felt confident was and had been for a long time gnawing in her stomach." I suggested the expediency of working on the imagination of this poor hypochondriac, as was done in the well-known facetious story of the man who fancied he had swallowed a cobbler; and who was cured by the apparent discharge first of the awls and strap, then of the lapstone, and, finally, of Crispin himself.

M. (2)

FRENCH SEASON RHYMES AND WEATHER RHYMES.

(Vol. ix., p. 9.)

The following weather rules are taken from a work which is probably but little known to the generality of English readers. It is entitled:

"Contes populaires, Préjugés, Patois, Proverbes, Noms de Lieux, de l'Arrondissement de Bayeux, recueillis et publiés par Frédéric Pluquet, &c.: Rouen, 1834."

Where saints' days are mentioned, I have added the day of the month on which they fall, as far as I have been able to ascertain it; but as it sometimes happens that there is more than one saint of the same name, and that their feasts fall on different days, I may perhaps, in some cases, have fixed on the wrong one:

"Année venteuse,
Année pommeuse."

"Année hannetonneuse,
Année pommeuse."

"L'hiver est dans un bissac; s'il n'est dans un bout, il est dans l'autre."

"Pluie du matin
N'arrête pas le pèlerin."

"À Noël au balcon,
À Pâques au tison."

"À Noël les moucheron,
À Pâques les glaçons."

"Pâques pluvieux,
An fromenteux."

"Le propre jour des Rameaux
Sème oignons et poreaux."

"Après Pâques et les Rogations,
Fi de prêtres et d'oignons."

"Fèves fleuries
Temps de folies."

"Rouge rosée au matin,
C'est beau temps pour le pèlerin."

"Pluie de Février
Vaut jus de fumier."

"Février qui donne neige
Bel été nous plège."

"Février
L'anelier" [anneau].

This saying has probably originated in the number of marriages celebrated in this month; the season of Lent which follows being a time in which it is not usual, in Roman Catholic countries, to contract marriage.

"Février emplît les fosses;
Mars les sèche."

"Mars martelle,
Avril coutelle."

An allusion to the boisterous winds of March, and the sharp, cutting, easterly winds which frequently prevail in April.

"Nul Avril
Sans épi."

"Avril le doux,
Quand il se fâche, le pis de tout."

"Bonne ou mauvaise poirette,
Il faut que Mars a trouve faite."

Poirette, in the dialect of Bayeux, means a leek.

"Froid Mai et chaud Juin
Donnent pain et vin."

"En Juignet [Juillet],
La faucille au poignet."

"À la Saint-Vincent [Jan. 22],
Tout dégèle, ou tout fend."

"Saint-Julien brise glace [Jan. 27],
S'il ne la brise, il l'embrasse."

"À la Chandeleur [Feb. 2],
La grande douleur."

Meaning the greatest cold.

"À la Chandeleur,
Où toutes bêtes sont en horreur."

Probably alluding to the rough state of their coats at this season.

"À la Saint-George [April 23],
Sème ton orge."

"Quand il pleut le jour Saint-Marc [April 25],
Il ne faut ni pouque ni sac."

"À la Saint-Catherine [April 29],
Tout bois prend racine."

"À la Saint-Urbain [May 25],
Le froment porte grain."

"À la Saint-Loup [May 28?],
La lampe au clou."

"S'il pleut le jour Saint-Médard [June 8],
Il pleuvra quarante jours plus tard."

"À la Saint-Barnabé [June 11]
La faux au pré."

"À la Saint-Sacrement [this year, June 15]
L'épi est au froment."

"Quand il pleut à la Saint-Gervais [June 19],
Il pleut quarante jours après."

"À la Madeleine [July 22],
Les noix sont pleines."

"À la Saint-Laurent [Aug. 10],
La faucille au froment."

"Passé la Saint-Clément [Nov. 23?],
Ne sème plus le froment."

"Si le soleil rit le jour Sainte-Eulalie [Dec. 10],
Il y aura pommes et cidre à folie."

"À la Sainte-Luce [Dec. 13?],
Les jours croissent du saut d'une puce."

"À la Saint-Thomas [Dec. 21],
Les jours sont au plus bas."

EDGAR MACCULLOCH.

Guernsey.

**VAULT INTERMENTS (Vol. ii., p. 21.): BURIAL IN AN
ERECT POSTURE (Vol. viii., pp. 329. 630.):
INTERMENT OF THE TROGLODITÆ (Vol. ii., p. 187.).**

In the 4th book of Evelyn's *Sylva* there is much interesting matter on this subject, besides what has been quoted above; and, to those herein interested, the following extract from Burn's *History of Parish Registers in England* will doubtless be acceptable:

"Many great and good men have entertained scruples on the practice of interment in churches. The example of the virtuous and primitive confessor, Archbishop Sancroft, who ordered himself to be buried in the churchyard of Fresingfield in Suffolk, thinking it improper that the house of God should be made the repository of sinful man, ought to command the imitation of less deserving persons: perhaps it had an influence over the mind of his successor, Archbishop Secker, who ordered himself to be buried in the churchyard of Lambeth. The Bishops of London in succession, from Bishop Compton to Bishop Hayter, who died in 1762, inclusive, have been buried in Fulham Churchyard."^[1]

Of the same opinion were Dr. Edward Rainbow, Bishop of Carlisle; Sir Matthew Hale, who used to say that churches were for the living and to

churchyards for the dead^[2]; Joseph Hall, Bishop of Norwich, who "did not hold God's house a meet repository for the greatest saint;" and William Bedell, Bishop of Kilmore, who made a canon in his synod to the following effect:

"IX. Ut corpora defunctorum deinceps in Ecclesiis non humentur, sed nec intra quantum pedem a pariete extrorsum."

Sir Thomas Latymer, of Braibroke in Northamptonshire, by his will directed thus:

I, Thomas Latymer of Braybroke, a fals knyghte to God, &c., my wrecchyd body to be buried where that ever I die in the next chirche yerde, God vouchsafe, and naut in the chirche, but in the utterist corner, as he that is unworthy to lyn therein, save the merci of God."

Dr. Isaac Barrow, Bishop of St. Asaph, was buried in a churchyard, although, from his having generously repaired and endowed his cathedral, he might be considered to have a claim of interment within its walls; and Baldwin, the great civilian, severely censures this indecent liberty, and questions whether he shall call it a superstition or an impudent ambition. Lanfranc, Archbishop of Canterbury, was the first who made vaults under the chancel, and even under the altar, when he rebuilt the choir of Canterbury, about 1075.^[3]

"The Irish long retained an attachment to their ancient customs and pagan superstitions; and the custom of burying in consecrated ground was not universal in Ireland in the twelfth century on the arrival of the English, as we find it enjoined in the Council of Cashel, held in 1172, mentioned by Cambrensis. A short time since some small earthen tumuli were opened on the Curragh of Kildare, under which skeletons were found standing upright on their feet, and in their hands, or near them, spears with iron heads. The custom of placing their dead erect was general among all the northern nations, and is still retained in Lapland and some parts of Norway; and the natives of North America bury their dead sitting in holes in the ground, and cover them with a mound of earth."—*Transactions of the R. Irish Academy*, vol. iii.

A Query I proposed (Vol. ii., p. 187.) in reference to the Trogloditæ never having been answered, I shall, perhaps, be allowed to use this opportunity myself to furnish an apposite and explanatory quotation, viz.—

"Troglodytæ mortui cervicem pedibus alligabant et *raptim cum risu et jocis efferebant*, nullaque loci habita cura mandabant terræ; ac ad caput cornu caprinum affigebant."—Cœlii Rhodigini, *Lectiones Antiquæ*, p. 792.

I shall conclude with the *rationale* of the erect posture, as illustrated by Staveley in his *History of Churches in England*:

"It is storied to be a custom among the people of Megara in Greece, to be buried with their faces downwards; Diogenes gave this reason why he should be buried after the same way, that seeing all things were (according to his opinion) to be turned upside down in succeeding times, he, by this posture, would at last be found with his *face upwards, and looking towards heaven*."

BIBLIOTHECAR. CHETHAM.

Footnote 1:[\(return\)](#)

Cole's MSS. vol. iv. p. 100.

Footnote 2:[\(return\)](#)

The Assembly at Edinburgh, in 1588, prohibited the burying in kirks.

Footnote 3:[\(return\)](#)

Cole's MSS., vol. iv.

In *Much Ado about Nothing*, Act III. Sc. 2., Don Pedro says:

"She shall be buried with her face upwards."

Theobald, Johnson, and Steevens have left notes upon this line. The following passage is part of Steevens' note:

"Dr. Johnson's explanation may likewise be countenanced by a passage in an old black-letter book, without date, intitled, 'A merye Jest of a

Man that was called Howleglas, &c.: How Howleglas was buried:

"Thus as Howleglas was deade, then they brought him to be buried. And as they would have put the coffyn into the pytte with 2 cordes, the corde at the fete brake, so that the fote of the coffyn fell into the botome of the pyt, and the coffyn stood bolt upryght in the middes of the grave. Then desired y^e people that stode about the grave that tyme, to let the coffyn to stande bolt upryght. *For in his lyfe tyme he was a very marvelous man, &c., and shall be buried as marvailously.* And in this maner they left Howleglas,' &c.

"Were not the Claphams and Mauleverers buried *marvailously*, because they were *marvelous* men?"—Johnson and Steevens' *Shakspeare*, vol. ii. p. 310.

J. W. FARRER.

"In Oliver Heywood's Register is the following entry [Oct. 28, 1684]:

'Capt. Taylor's wife of Brig House, buried in her garden with head upwards, standing upright, by her husband, daughter, &c. Quakers.'"—Watson's *History of Halifax*, p. 233.

CERVUS.

"Some Christians [Russians?] decline the figure of rest, and make choice of an erect posture in burial."—Browne's *Hydriotaphia*, ch. iv. p. 246.

Query, With the desire of meeting the Judge, face to face, when He cometh?

MACKENZIE WALCOTT, M.A.

DO CONJUNCTIONS JOIN PROPOSITIONS ONLY?

(Vol. ix., p. 180.)

PROFESSOR BOOLE'S communication on the above question reminds me of some remarks of mine, published in an article on Sir John Stoddart's *Philosophy of Language*, in the *North British Review* for November, 1850.

In reference to the opinion maintained by Sir John Stoddart and Dr. Latham, that the conjunction always connects sentences, the preposition words, it is observed:

"It does not apply to cases where the conjunction unites portions of the *predicate*, instead of the *subject*, of a proposition. If I assert that a gentleman of my acquaintance drinks brandy *and* water, he might not relish the imputation of imbibing separate potations of the neat spirit and the pure element. Stradling *versus* Stiles is a case in point: 'Out of the kind love and respect I bear to my much honoured and good friend, Mr. Matthew Stradling, Gent., I do bequeath unto the said Matthew Stradling, Gent., *all my black and white horses*.' The testator had six black horses, six white horses, and six pied horses. The whole point at issue turns upon the question whether the copulative *and* joins sentences or words. If the former, the plaintiff is entitled to the black horses, and also to the white, but not to the pied. If the latter he has a right to the pied horses but must forego his claim to the rest. And if the latter interpretation be adopted, must we say that *and* is a preposition, not a conjunction, or must we modify the definitions of these two parts of speech?"

The following definitions are finally proposed in place of the ordinary ones:

"A preposition is a part of speech annexed to a noun or verb in a proposition, and serving to connect it with a noun or pronoun by which it is limited, as the subject or predicate of that proposition."

"A conjunction is a part of speech serving to unite two propositions as parts of the same complex assertion, or two words as similar parts of the subject or predicate of one proposition. By *similar parts* it is meant that the words so united stand in similar relations to the term to which they belong. For example, 1. As attributes, both qualifying a subject, 'Sic bonus et sapiens dignis ait esse paratus.' 2. As prepositions, both introducing limiting nouns 'without money and without price.' 3. As substantives, both forming parts of a collective subject, 'two and three are five.' Whereas with the preposition, the words united are not similar, but opposed, the *limiting* and the *limited* notion."

While differing from some of PROFESSOR BOOLE'S views on the relation of logic to mathematics, I fully agree with him that the true functions of the several parts of speech must be determined by an analysis of the laws of thought. Both grammar and logic might be considerably improved by an accurate development on psychological principles.

H. L. MANSEL, B.D.

St. John's College, Oxford.

Has not your correspondent G. BOOLE fallen into an inaccuracy whilst contending about the accuracy of another's logic? He seems to employ the proposition, *all trees are endogens or exogens*, as an example of an accurate proposition.

I forget the technicalities in which the objection to such a proposition would be properly expressed; but it cannot well be denied that *all* comprehends the whole genus, and expresses that whole collectively. If so, the proposition affirms that the whole genus of trees must either be acknowledged to be endogens, or else to be *all* exogens. Does not such an affirmation require the word *every* to clear it from ambiguity? Will it be cleared of ambiguity by saying, "Every tree is endogen or exogen?" Or must we say "Every tree is either endogen or exogen?"

If your correspondents should happen to take down the second volume of *Locke on Human Understanding*, b. III. ch. iii. § 11., on "Universals," his note will supply them with another knot to unravel, of which I would gladly see their solution. For he has there said, "Three Bobaques are all true and real Bobaques, supposing the name of that species of animals belongs to them." Is this name formed in jest? For the philosopher sometimes puts on an awkward affectation of humour in his replies to Bishop Stillingfleet, to whom this note is addressed.

H. W.

HAS EXECUTION BY HANGING BEEN SURVIVED?

(Vol. ix., p. 174.)

Two instances of criminals being restored to life after having been hanged are recorded, on good authority, to have occurred in this town. Henry of Knighton (who was a Canon of Leicester Abbey) relates in his *Chronicle* (col. 2627), under the year 1363, that—

"One Walter Wynkeburn having been hanged at Leicester, on the prosecution of Brother John Dingley, Master of Dalby, of the order of Knights Hospitallers, after having been taken down from the gallows as a dead man, was being carried to the cemetery of the Holy Sepulchre of Leicester, to be buried, began to revive in the cart, and was taken into the church of the Holy Sepulchre by an ecclesiastic, and there diligently guarded by this Leicester ecclesiastic to prevent his being seized for the purpose of being hanged a second time. To this man King Edward granted pardon in Leicester Abbey, and gave him a charter of pardon, thus saying in my hearing, 'Deus tibi dedit vitam, et nos dabimus tibi Cartam?'"

We learn, on the authority of a cotemporary record, preserved in the archives of this borough, and quoted in Thompson's *History of Leicester*, p. 110., that in June, 1313, Matthew of Enderby, a thief, was apprehended and imprisoned in the king's gaol at Leicester; and that being afterwards convicted, he was sentenced by Sir John Digby and Sir John Daungervill, the king's justices, to be hanged; that he was led to the gallows by the frankpledges of Birstall and Belgrave, and by them suspended; but on his body being taken down, and carried to the cemetery of St. John's Hospital for interment, he revived and was subsequently exiled. Three instances are narrated in Wanley's *Wonders of Man*, vol. i. pp. 125, 126., and another will be found in Seward's *Spirit of Anecdote and Wit*, vol. iii. p. 88., quoted from Gamble's *Views of Society, &c. in the North of Ireland*; whilst in vol. ii. p. 220. of the same work, another restoration to life is stated to have taken place in the dissecting-room of Professor Junker, of Halle: but I know not how far these last-mentioned anecdotes are susceptible of proof.

WILLIAM KELLY.

Leicester.

There appears to be no reason to doubt the truth of individuals having survived execution by hanging.

Margaret Dickson was tried, convicted, and executed in Edinburgh, in the year 1728. After the sentence had been accomplished, her body was cut down and delivered to her friends, who placed it in a coffin, and conveyed the same in a cart towards her native place for the purpose of interment. On her journey the dead came to life again, sat up in her coffin, and alarmed her attendants. She was, however, promptly bled, and by the next morning had perfectly recovered. She lived for twenty-five years afterwards, and had several children.

In 1705 one John Smith was executed at Tyburn; after he had hung fifteen minutes a reprieve arrived. He was cut down and bled, and is said to have recovered. (Paris and Fonblanque, *Med. Jur.*, vol. ii. p. 92.)

When it is considered that death takes place after hanging, in most cases by asphyxia, in very rare instances by dislocation of the spine, we can understand the possibility of recovery within certain limits.

That artificial means have been adopted to ensure recovery, the case of Gordon, which occurred in the early part of the seventeenth century, satisfactorily establishes.

This evil-doer had been condemned for highway robbery, and with a view to escape from his penalty, succeeded in obtaining the following friendly assistance.

A young surgeon named Chovell (concerning whose motives we will not inquire too curiously) introduced a small tube through an opening which he made in the windpipe. The hangman, having accomplished his part of the tragedy, Gordon's body was handed over to his friends. Chovell bled him, and the highwayman sighed deeply, but subsequently fainted and died. The want of success was attributed to the great weight of the culprit, who consequently dropped with unusual violence. (*Memoirs of the Royal Academy of Surgery in France*, Sydenham Society Publications, p. 227.)

How far the mechanical contrivance by which Bouthron, in Scott's *Fair Maid of Perth*, was kept alive after hanging, was founded on successful experience, I know not. Nor do I know whether Hook, in his *Maxwell*, had any farther authority than his imagination for his story of resuscitation,

though I have heard it said to be founded on the supposed recovery of a distinguished forger, who had paid the last penalty for his offences, and who was said to have really died only a short time since.

OLIVER PEMBERTON.

Birmingham.

The *Cork Remembrancer*, a chronicle of local events, which I recollect seeing among my late father's (a Cork man) books, relates the fact of a man who was hanged in that city, and on the evening of the same day appeared, not in the *spirit*, but in *body*, in the theatre. I regret I have not the book, but it is to be had somewhere. Undoubtedly your late venerable correspondent, James Roche, Esq., could have authenticated my statement, and with fuller particulars, as I only relate the record of it from memory, after a lapse of many years. I think the occurrence, of which there is no doubt, took place somewhere about the year 1782 or 1784; and after all there is nothing very extraordinary about it, for the mode of execution by hanging at that time presented many chances to the culprit of escaping death; he ascended a ladder, upon which he stood until all the arrangements were completed, and then was quietly turned off, commonly in such a manner as not to break the neck or hurt the spinal marrow. It was most likely so in the case I relate and the man having been suspended the usual time, and not having been a murderer, was handed over to his friends, who took prompt measures, and successfully, to restore animation, and so effectually, that the man, upon whom such little impression by the frightful ordeal he had passed was made, mixed in the world again, and was at the theatre that evening.

Little chance is there of escaping death by the present mode of executing.

UMBRA.

Dublin.

The *Gentleman's Magazine*, vol. x. p. 570., after giving the names of those executed on Nov. 24, says:

"And William Duell, for ravishing, robbing, and murdering Sarah Griffin at Acton. The body of this last was brought to Surgeons' Hall to be anatomised; but after it was stripped and laid on the board, and one of the servants was washing him in order to be cut, he perceived life in

him, and found his breath to come quicker and quicker; on which a surgeon took some ounces of blood from him: in two hours he was able to sit up in his chair, and in the evening was again committed to Newgate."

And at p. 621. of the same volume,—

"Dec. 9th. Wm. Duell (p. 570.) ordered to be transported for life."

Other instances will be found in the *Gentleman's Magazine*, vol. i. p. 172., and vol. xxxvii. p. 90; and in vol. lxx. pt. i. p. 107. is the very curious case of Anne Green of Oxford, quoted from Dr. Plot's *Natural History of Oxfordshire*, p. 197., which is well worth reading. Also, in vol. lvii. pt. i. p. 33., is a letter, containing the two following quotations from Cardan, in explanation of the phenomenon of surviving death by hanging:

"Is qui diu suspensus Bononiæ jacuit, vivus inventus est, quod asperam arteriam non cartilagineam sed osseam habuit."—*Cardanus*, lib. ii. tr. 2. contr. 7.

"Constat quendam bis suspensum servatum miraculi specie; inde cum tertio Judicis solertiâ periisset, inventam osseam asperam arteriam."—*Cardanus*, lib. xiv., De rerum variet., cap. 76.

In the *Newgate Calendar, or Malefactors' Bloody Register*, vol. ii. p. 233., is the account of Margaret Dickson, who was executed for child-murder at Edinburgh, June 19, 1728, with an engraving of her "rising from her coffin near Edinburgh, as she was carrying from the place of execution in order for interment."

"By the Scottish law," says the author, "every person on whom the judgment of the court has been executed has no more to suffer, but must be for ever discharged; and the executed person is dead at law, so that the marriage is dissolved. This was exactly the case with Margaret Dickson, for the king's advocate could not pursue her any farther, but filed a bill in the High Court of Justiciary against the sheriff for not seeing the judgment executed. And her husband being a good-natured

man, was publicly married to her within a few days after the affair happened."

ZEUS.

For the information of your correspondent I send an extract from the *Gentleman's Magazine* for February, 1767:

"*Saturday* 24th (Jan.).—One Patrick Redmond having been condemned at Cork, in Ireland, to be hanged for a street robbery, he was accordingly executed, and hung upwards of twenty-eight minutes, when the mob carried off the body to a place appointed, where he was, after five or six hours, actually recovered by a surgeon, and who made the incision in his windpipe called *bronchotomy*, which produced the desired effect. The poor fellow has since received his pardon, and a genteel collection has been made for him."

C. R.

I would refer your correspondent Σ., who has put a Query whether persons who have suffered execution by hanging have outlived the infliction, to a case of a woman named Anne Green, which appears to be authenticated upon the most unequivocal testimony of two very estimable authors. The event to which I allude is described in Dr. Robert Plot's *History of Oxfordshire*, folio, Oxford, 1705, p. 201.; and also in the *Physico-Theology* of Rev. W. Derham, F.R.S., 3rd edit., 8vo., London, 1714, p. 157. The above-mentioned Anne Green was executed at Oxford, December 14, 1650.

I will not trespass upon your space, which appears pretty well occupied, with a lengthened detail from the authors pointed out, as their works are to be found in most libraries; and thinking Polonius's observation that "brevity is the soul of wit" may be more extensively applied than to what relates to fancy and imagination. I would, however, crave one word, which is, that you would suggest to your correspondents generally that in referring to works they would give, as distinctly as possible, the heads of the title, the name of the author, the edition, if more than one, the place of publication, date, and page. I have experienced much loss of time from incorrect and imperfect references, not to mention complete disappointment in many instances, which I trust may plead my apology for this remark.^[4]

Г.

Footnote 4:[\(return\)](#)

As our pages are frequently consulted for literary purposes, the suggestion of Γ is extremely valuable, and we trust his hints will be adopted by our numerous correspondents.—ED.

PHOTOGRAPHIC CORRESPONDENCE.

A Stereoscopic Note.—I possess a small volume entitled *A Disquisition about the Final Causes of Natural Things*, by T. H., B.B., Fellow of the Royal Society, 1688. "To which are subjoined, by way of Appendix, some uncommon observations about vitiated sight." In this strange appendix, one of the uncommon observations is worth the notice of your correspondents who write on stereoscopic subjects. I give you an extract from it:

"It has been of late the opinion of very learned men, that though both our eyes are open, and turned towards an object, yet 'tis but one of them at a time that is effectually employed in giving us the representation of it: which opinion, in this place where I am writing but observations, it were not proper to discuss, especially because what is suppos'd to be observed will not always uniformly happen, but may vary in particular persons according to their several customs, and the constitution of their eyes: for I have, by an experiment purposely made, several times found, that my two eyes together see an object in another situation than either of them apart would do." And in giving instances for and against binocular vision, the author says: "A yet more considerable instance of such mistakes I afterwards had from a noble person, who, having in a fight, where he play'd the *hero*, had one of his eyes strangely shot out by a musquet bullet, that came out at his mouth, answered me, that not only he could not well pour drink out of one vessel into another, but had broken many glasses by letting them fall out of his hand, when he thought he had put them into another's, or set them down upon a table." The whole book is a very curious one, and I should be obliged if the Editor of "N. & Q." could tell me who T. H. was?^[5]

J. LAWSON SISSON.

Edingthorpe.

Footnote 5:[\(return\)](#)

The Hon. Robert Boyle.

Photographic Query.—I think many amateur photographers would be thankful for plain and simple directions how to mount their positives on cardboard. Would the Editor of "N. & Q." assist us in this?

J. L. S.

Deepening Collodion Negatives.—I have lately been trying a method of deepening collodion negatives, so as to render instantaneous impressions capable of being printed from, which I have found to answer admirably; and although it is but a slight modification of MR. LYTE'S process described in "N. & Q.," it is a very important one, and will be found to produce far better results. The picture having been developed in the usual way, with a solution of pyrogallic acid, is whitened by means of MR. ARCHER'S solution of bichloride of mercury. The plate is then washed with water and a solution of *iodide of cadmium* poured on. This converts the white chloride of mercury, which constitutes the picture, into the yellow iodide, in the same manner as the solution of iodide of potassium recommended by MR. LYTE; but is much to be preferred, as it produces a more uniform deposit. The solution of iodide of potassium dissolves the iodide of mercury as soon as it is formed, and therefore cannot be left on the plate until the decomposition of the chloride is complete, without injury resulting to the picture, as the half-tones are thereby lost, and those parts over which the solution first flows become bleached before the other parts have attained their highest tone; whereas the solution of iodide of cadmium may be allowed to remain for any length of time on the plate, without any fear of its injuring the negative.

J. LEACHMAN.

Caution to Photographers.—About six months since, I procured some gun cotton from a chemist which appeared very good, being quite soluble, and the collodion produced by it was excellent. That which I did not use I placed in what I believed to be a clean dry-stopped bottle, and put the bottle in a dark cupboard. I was much surprised the other day, upon going to the cupboard, to find the stopper blown out, and the cotton giving out dense red fumes of nitrous acid. It appears to me to be almost upon the point of combustion, and I have, accordingly, placed it under a bell-glass in a porcelain dish to watch the result. I feel satisfied, however, that there is some risk, and, as it may often be near ether, spirits of wine, or other inflammable chemicals, that caution is necessary not only in preserving it at

home, but especially in its transmission abroad, which is now done to some extent.

AN AMATEUR.

Replies to Minor Queries.

Artesian Wells (Vol. ix., p.222.).—Wells are often so called without just pretence to a similarity with those in Artois, whence this name is derived. There are some natural springs in the northern slope of the chalk in Lincolnshire, near the Humber, called *blow-wells*, which may be considered naturally Artesian. The particular character by which an Artesian well may be known is, that the water, if admitted into a tube, will rise above the level of the ground in its immediate vicinity up to the level of its sources in the basin of the district; this basin being usually gravel, lying betwixt two strata impervious to water, formed the surrounding hills, and extending often over many miles of the earth's surface. If we conceive the figure of a large bowl, inclosing a somewhat smaller one, the interstice being filled with gravel, and the rain falling on the earth being collected within such interstice, then this interstice being tapped by boring a well, the water will rise up from the well to the same height as it stands in the interstice, or rim of the natural basin. Such is an Artesian well. Supposing this huge mineral double bowl to be broken by a geological *fault*, the same hydrostatic principle will act similarly.

The question of *preferable* put by STYLITES must be governed by the *cui bono*. Universal adoption is forbidden, first, by the absence of a gravelly stratum betwixt two strata impervious to water; and secondly, by the excessive expense of boring to such great depths. Where expense is not in excess of the object to be attained, and where the district is geologically favourable, the Artesian wells are preferable to common ones derived from natural tanks or water caverns, first, for the superabundant supply; secondly, for the height to which the water naturally rises above the ground; and thirdly, because boring Artesian wells, properly so called, does not rob a neighbour's well for your own benefit, afterwards to be lost when any neighbour chooses to dig a little deeper than you. This is a matter with which London brewers are familiar.

T. J. BUCKTON.

Lichfield.

Prior's Epitaph on Himself (Vol. i., p. 482.).—MR. SINGER quotes an epitaph on "John Carnegie," and says it is the prototype of Prior's epitaph on himself. I have looked among Prior's poems for this epitaph, and have not been able to discover anything that can be said to answer MR. SINGER's description of it. Would your correspondent oblige me with a copy of the epitaph to which he alludes? My edition of Prior is a very old one; and this may account for the omission, if such it be.

HENRY H. BREEN.

St. Lucia.

[The following is a copy of the epitaph:

"Nobles and heralds, by your leave,
Here lies what once was Matthew Prior,
The son of Adam and of Eve;
Can Bourbon or Nassau claim higher?"]

Handwriting (Vol. viii., p. 639.).—In your concluding Number of last year, E. B. requested information as to any work in English, French, German, or Spanish, giving a standard alphabet for the various kinds of writing now in use, with directions for teaching the same. I fear I shall not satisfy all your correspondent's inquiries; but the following may be of some service. I have in my possession a German work, nearly of the kind he requires. The title is, *Gründliche Anweisung zum Schönschreiben*, by Martin Schüssler, Wiesbaden, 1820. It is of an oblong shape, and consists entirely of engraved plates, in number thirty-two. It begins with some directions for the form and inclination of letters; then follows an explanation of five rules for writing, which are given in the German handwriting. After exhausting the German, the author proceeds to English letters and handwriting, followed by engrossing hand. Then he gives the *fraktur*, or black-letter characters, with some elaborate and beautiful capitals. He next gives specimens of French handwriting, and ends with Greek current hand, and plates of large capitals of ornamental patterns; all different.

If this work would at all answer the purpose of E. B., and he would wish to see it, it shall be sent to him by post on his giving his address to the writer, whose card is enclosed.

F. C. H.

I have in my possession for sale, a scarce old work, folio, a good clean copy of Geo. Bickman's *Universal Penman*, 1733; with numerous engravings.

D. H. STRAHAN.

10. Winsly Street, Oxford Street.

"*Begging the Question*" (Vol. viii., p. 640.; Vol. ix., p. 136.).—It may interest your logical readers to be informed of the fact that this fallacy was called the *petition of the principle*, this being, of course, a literal rendering of the Latin phrase. The earliest English work on logic in which I have found this Latinism is, *The Arte of Logike, plainelie set foorth in our English Tongue, easie both to be understoode and practised*, 1584. Here occurs the following passage:

"Now of the default of Logike, called Sophisme. It is eyther { Generall. } / { Speciall. } The generall are those which cannot be referred to any part of Logike. They are eyther { Begging of the question, called the petition of the principle. } / { Bragging of no proof. } Begging of the question is when nothing is brought to prooue, but the question, or that which is as doubtfull."

C. MANSFIELD INGLEBY.

Birmingham.

When and where does Sunday begin or end? (Vol. ix., p. 198.).—The Christian festival, commonly called Sunday, named by the ancient church "The Lord's Day," because that thereon the resurrection was accomplished, and the new creation, the work of Messias, commenced, this feast, I say, begins at six o'clock in the evening of Saturday, the last day of the week, at the close of that Hebrew fast; and the end of Sunday arrives at six o'clock in the evening of that first day of the week. When time was measured out, the count began with "the evening," which was created first; and which, with the succeeding morning, reckoned as the first day.

H. OF MORWENSTOW.

This question has been, to a certain extent, before debated by Mr. Johnson in his addenda to his *Clergyman's Vade Mecum*, pp. 106, 107., and *Ecclesiastical Law*, as quoted by Wheatly, who combated his reasoning of Sunday beginning at six o'clock on the Saturday evening. Johnson rests his

argument upon Deuteronomy xvi. 6., where the sacrifice of the passover is ordered "at even, on the going down of the sun;" upon Exodus xii. 6., where the whole "congregation of Israel shall kill it in the evening;" and I think he might have also taken Genesis i. 5., "And the evening and the morning were the first day." Johnson says that

"The Church of England has divided her nights and days according to the Scriptural, not the civil account: and that though our civil day begins from midnight, yet our ecclesiastical day begins at six in the evening.... The proper time for vesper, or evening song, is six of the clock, and from that time the religious day begins."

Wheatly admits that "the festival is not past till evensong is ended," but does not agree to its commencing on the preceding evensong; for if it does, he cannot reconcile the rubric at the end of the Table of Vigils.

On the whole, I think Johnson has the best of the argument: and that Sunday begins ecclesiastically at six in the evening on Saturday; civilly, at midnight.

R. J. S.

Precious Stones (Vol. viii., p. 539.; Vol. ix., pp. 37. 88.).—Respecting precious stones, some information may be gleaned from the notes to Sir John Hill's translation of Theophrastus' *History of Stones* (8vo., 2nd edit., London, 1774).

J. M.

Oxford.

Scotch Grievance (Vol. ix., p. 160.).—Your correspondents refer to coins of a period when the Scotch do not complain. Their grievance, as alleged, is as to the mode of bearing the lion *since* the Union in 1707; to which the instances quoted, between the time of James I. and William III., have no reference.

G.

"*Corporations have no Souls,*" &c. (Vol. viii, p. 587.).—The following, which I extract from Hone's *Table-Book*, is probably the remark to which

your correspondent B. alludes:

"Mr. Howel Walsh, in a corporation case tried at the Tralee assizes, observed that a corporation cannot blush. It was a body, it was true; had certainly a head—a new one every year—an annual acquisition of intelligence in every new lord mayor. Arms he supposed it had, and long ones too, for it could reach at anything. Legs, of course, when it made such long strides. A throat to swallow the rights of the community, and a stomach to digest them! But who ever yet discovered, in the anatomy of any corporation, either bowels or a heart?"

HENRY H. BREEN.

St. Lucia.

Devereux Bowly (Vol. ix., p. 173.).—In reply to UNEDA's inquiry, Devereux Bowly, watchmaker, of Lombard Street, London, died Mar. 15, 1773, in his seventy-eighth year.

He was a member of the Society of Friends, and being at the time of his decease a widower, and without family, he left a large portion of his property to their school, then at Clerkenwell, in the neighbourhood of which he resided.

T. S. N.

Reversible Names (Vol. viii., pp. 244. 655.).—There is a gentleman in this island who bears the name and surname of *Xuaved Devaux*, which are mutually reversible.

HENRY H. BREEN.

St. Lucia.

Your correspondent BALLIOLENSIS, in speaking of reversible or palindromic English names, seems to have overlooked the names of *Hannah* and *Anna*.

X.

Duval Family (Vol. viii., pp. 318. 423.).—A grant was made by the crown in Ireland on the 4th July, 1 James II., to Garret Wall, *alias* Duvall, sen.,

Esq.; Garret Wall, *alias* Duvall, jun.; Jas. Wall, *alias* Duvall; and Michael Wall of the manor, town, and lands of Culenemucky, co. Waterford.

J. F. FERGUSON.

Member of Parliament electing Himself (Vol. viii., p. 536.).—In the article forwarded by H. M. are many gross errors. William M'Leod Bannatyne, Esq., was Sheriff of Buteshire from Dec. 22, 1775, till May 28, 1799; during which period there were only two county elections in Buteshire, viz. April 22, 1784, and June 27, 1796 (the counties of Bute and Caithness being represented only in alternate parliaments), and on *neither* of those occasions was he the *sole* freeholder present. The statement in question can therefore only refer to the election on Nov. 13, 1806, when, owing to some accidental circumstances, he was the only freeholder present. In 1799 he was raised to the Bench of the Court of Session by the title of Lord Bannatyne; and consequently he neither *did* nor *could* act as sheriff seven years after he ceased to hold that office. It is true that, as a technical formality, he nominated himself chairman of the meeting to enable him to sign the minute of the election in that capacity; but it is *not true* that he either administered the oaths to himself, or signed the return of the election as sheriff. I was then a lad, and was present as a spectator on that occasion, when I saw Mr. Blain the sheriff-substitute administer the oaths to Lord Bannatyne; and, of course, Mr. Blain also made the election return, certifying that "the Honorable James Stuart Wortley Mackenzie of Rosehaugh, &c. (a relation of the family of Bute) had been duly elected." Thus you see that the title of the article is quite erroneous, and is not even borne out by the original account, as the freeholder did not elect *himself*, but another person; and he did not act in any other capacity than that of a freeholder: the case being extraordinary enough of only *one* freeholder attending at a county election, without the addition of those marvellous circumstances.

J. M'K.

Gresebrok, in Yorkshire (Vol. viii., p. 389.).—To assist your correspondent Ἡραλδικος, I may tell him that the family he inquires about now resides at Horton Castle and Audenham in Staffordshire. Many years ago, when I took some interest in genealogy, I had the pleasure of being a guest of this family; and I then heard it said, that they could trace a very ancient and

brilliant line from one Osbert, who married a great heiress at the Conquest, and that they were direct descendants of the ancient kings of England. Some of Mr. Burke's publications I think would assist Ἡραλδικος; not having them by me, I cannot give the exact reference; but some months ago I saw, either in the *Landed Gentry*, or in the *Visitations*, a note of the family.^[6] But I think, if your correspondent could by any means see Mr. Grazebrook's papers (as above noted), he would obtain all the particulars he may require.

HOSPES.

Charlotte Street, London.

Footnote 6:[\(return\)](#)

Ferdinando Smith, Esq., of Halesowen, born March 26, 1779, a magistrate and deputy-lieutenant, and Lieut.-Colonel of the Worcester Militia, married first, in July, 1802, Eloisa Knudson, who died s. p. Sept. 14, 1805; and, secondly, Oct. 5, 1830, Elizabeth, fourth daughter of Michael Grazebrook, Esq., of Audnam, co. Stafford, by whom he left two surviving sons, Ferdinando Dudley Lea, now of Halesowen, and William Lea, born Feb. 27, 1836. Colonel Smith died July 20, 1841.—Burke's *Landed Gentry*, p. 1248.—ED.

Sir Anthony Fitzherbert not Chief Justice (Vol. viii., pp. 576. 631.).—The accompanying extract will resolve the difficulty which M. W. R. proposes:

"But here our author objects against himself: That once upon a time the archbishop called a synod by his own authority, without the king's licence; and was thereupon prohibited by Fitzherbert, Lord Chief Justice; but the archbishop regarded not his prohibition. What this is to his purpose I cannot tell, nor do I see wherefore he brought it in, unless it were to blame Rolle for quoting Speed for it. And therefore, in behalf of both, I shall take the liberty to say thus much. That I know not what harm it is for a man in his own private collections—for such Rolle's *Abridgment* was, though afterwards thought worthy of a public view—to note a memorable passage of history, and make a remark of his own upon it, out of one of the most faithful and judicious of all our modern historians.

"I have before taken notice of this passage, and that not from Speed, but from Roger Hoveden; from whom I suppose Speed may also have taken the relation. I shall therefore only beg to set this gentleman, to whom all our historians are I doubt equally unknown, right in two

particulars; by telling him, that *neither was Fitzherbert the man who prohibited the archbishop, neither was he Chief Justice when he did it. His name was Geoffrey Fitz-Peter.* He was Earl of Essex, and a very eminent man in those days; and his place was much greater than this author represents it; even Lord Justice of England, which he was first made by King Richard, anno 1198; and held in the King's absence to his death, anno 1213; in which year King John, going over into France, constituted Peter, Bishop of Winchester, Lord Justice in his place."—Wake's *Authority of Christian Princes asserted*, pp. 284-6.

WM. FRASER, B.C.L.

Tor-Mohun.

The Privileges of the See of Canterbury (Vol. viii., p. 56.).—As no one has yet volunteered to solve MR. FRASER'S question, How the letter of Pope Boniface ordaining that, *however human circumstances might be changed*, the city of Canterbury should ever thereafter be esteemed the metropolitan see, can be reconciled with the creation of the archiepiscopal see of Westminster,—I may suggest as a solution this maxim:

"Nihil tam conveniens est naturali æquitati, unumquodque dissolvi eo ligamine quo ligatum est."

It is possible, too, that Pope Pius IX. may have considered that a case had arisen for applying this principle,—

"Necessitas publica major est quam privata."

But be this as it may (and you will excuse me in observing, by the way, that I do not concur in the correctness of this hypothetical view if taken by his holiness), I hope we shall hear from MR. FRASER whether the former of the above maxims has been effectual to remove his difficulties, which, as I presume from their insertion in "N. & Q.," are not of a purely theological nature.

RESPONDENS.

Chauncy or Chancy (Vol. ix., p. 126.).—Your correspondent J. Y. will find an account of Charles Chauncey, B.D., and Fellow of Trinity College,

Cambridge, born in 1589, and died in 1671, in vol. iii. p. 451. of Brook's *Lives of the Puritans*. See also Chalmers's *Biographical Dictionary*.

Ἀλιεύς

Dublin.

"*Three cats*," &c. (Vol. ix., P. 173.).-MISS BOCKETT wishes for the remainder of the "old ballad" beginning with "Three cats;" and I beg to inform her, that there never was any more than what she mentions. The object of the singer was, to cause fun by an elaborately modulated cadenza on the word *coal-dust*, and then to call on the company to join in chorus. He next continued with some significant word, as "notwithstanding;" and, after a pause of some bars rest, he went on with "Three cats," as before, *ad infinitum*, changing the initial word each time. It required some tact to give it effect; but, if sung by a clever humorist, was sure to keep the room in a roar of laughter. But its day is gone by.

GRIMALKIN.

Halliwell, in his *Collection of Nursery Rhymes*, does not mention "Three cats by the fire-side," &c.; but I have in my possession several not named by him, and "Three cats," &c. amongst the number, which I have much pleasure in transcribing for the benefit of JULIA R. BOCKETT's ancient friend:

"Three cats sat by the fire-side,
In a basket full of coal-dust,
One cat said to the other
In fun, pell mell, 'Queen Anne's dead.'
'Is she,' said Grimalkin, 'then I'll reign queen in her stead,'
Then up, up, up, they flew up the chimney."

ANON.

Probably this is the song of "The Turnspits:"

"Two little dogs sat by the fire-side,
In a basket full of coal-dust;
Says one little dog to the other little dog,
'If you don't go in, I must.'"

N.B.—Into the wheel.

SMOKEJACK.

Officers of Charles I. (Vol. ix., p. 74.).—SIR T. METCALFE mentions, as among the "curious stray sheets" in his possession, "a list of all the gentlemen and officers who fell in the cause of Charles I." As I have long wished to see a list of King Charles's officers, but have never, as yet, met with anything like a complete catalogue of those who fell, or of those who survived, it would be interesting to me, as I doubt not it would be interesting to many of your readers, to see this "curious stray sheet" transferred to the pages of "N. & Q."

Can you refer me to any published, or otherwise accessible, list of the officers who fought *against* Charles I., whether by sea or land?

Is there any printed list of officers at the time of the Restoration?

* *

D. O. M. (Vol. iii., p. 173.; Vol. ix., p. 137.).—Would R. W. D. state his reasons for rendering these letters "Datur omnibus mori?" Such an inscription would of course be *à propos* in the case of a tombstone; but the ordinary interpretation, "Deo Optimo Maximo," would likewise be fitting, and it is not probable that the same initials should have two distinct meanings.

W. M. N.

Whitewashing in Churches (Vol. ix., p. 148.).—Mr. Hudson Turner informs us (*Domestic Architecture in England*, vol. i. p. 246.) that as early as the thirteenth century the practice of the whitewashing buildings was universal; and that "the process, so vehemently denounced by modern antiquaries, was liberally applied also to ecclesiastical edifices."

WILLIAM KELLY.

Leicester.

Mr. Hudson Turner says:

"We are not to consider the practice of whitewashing stonework as a vice peculiar to modern times. Our ancestors had as great an objection

to the natural surface of stone, whether in churches or other buildings, as any church wardens or bricklayers of the nineteenth century. Several writs of Henry III. are extant, directing the Norman Chapel in the Tower to be whitewashed. Westminster Hall was whitewashed for the coronation of Edward I.; and many other ancient examples might be cited. In fact it seems to have been the rule to plaster ordinary stonework."—*Domestic Architecture in England*, p. xxvi.

A far earlier instance of the practice appears in Deuteronomy xxvii. 2.

K's question, however, is scarcely answered by the above, as it cannot be supposed that delicate sculpture was clogged with whitewash until it became obnoxious on religious grounds.

C. R. M.

Enfield Church (Vol. viii., p. 352.).—Your correspondent is quite wrong as to the date of this building. The nave is separated from the north and south aisles by an arcade of five arches of undoubted Middle Pointed work; not later than the beginning of the fourteenth century, to which date also belongs the east window of the chancel: the "clere-story," which has the device of a rose and wing (not *ring*), is probably of the date assigned to the whole church by your correspondent. The south aisle was much altered about forty years ago, the windows of which are a bad imitation of those in the north aisle. In making alterations to the chancel in 1852 the piscina, and a portion of the sedilia, a drawing of which is given in *The Builder*, vol. x. p. 797., with a window over, were brought to light. They belong to the First Pointed period, or about the latter part of the twelfth century; clearly showing that a portion, at least, of the church is of the last-mentioned date.

I have always understood that the wing and rose, on the walls of the clere-story, was the cognizance of Abbot Wingrose of Waltham.

JAS. P. ST. AUBYN.

Coin of Carausius (Vol. ix., p. 148).—C. G. is right in considering his coin as of Carausius, who reigned from 1040 to 1046 A.U.C. I would suggest P. F. for Pius Felix, as preferable to P. P.

The dates will show that the letters MLXXI have nothing to do with the year 1071. On other coins of Carausius we find the signs ML, *Moneta Londinensis*, or *Moneta Londini (percussa)*; and MSL, *Moneta signata Londini*. These interpretations are justified by analogy with the Roman coins, and by the signs on coins of Constantine, MSL, which must be interpreted as on the coins of Carausius, MLON, and MLN, *Moneta Londini (percussa)*. The abbreviation LN for LON is analogous to RV for *Ravenna*, which is undoubted.

As for the letters XXI, they occur very frequently, either alone or with others, on coins of Aurelian and his successors. They have evidently relation to the value of the coin, and are replaced by the Greek letters KA, which have the same numerical value, on coins of Diocletian, &c. As analogous signs, I may quote LXXII and OB, the corresponding Greek letters, on *amei* respectively of Constantine and Valentinian, showing the *ameus* = $\frac{1}{72}$ of a pound; LX on silver coins of Constantius = $\frac{1}{60}$ of a pound; and XCVI on denarii of Diocletian = $\frac{1}{96}$ of a pound.

It has not yet been explained, however, in what relation these copper coins stood to the others, so as to justify the XXI, unless Mommsen may have done so in a book I have not seen, *Ueber den Verfall des Münzwesens in der Kaiserzeit*, 1851. See for the particulars of the above-cited coins, Pinder and Friedländer's *Beiträge zur Münzkunde*, p. 17. and following.

W. H. SCOTT.

Torquay.

Society for Burning the Dead (Vol. ix., p. 76.).—

"The Pioneer Metropolitan Association for Promoting the Practice of Decomposing the Dead by the Agency of Fire. W. H. Newman, Hon. Sec., to whom all communications are to be addressed, post paid, at the City of London Mechanics' Institute, Gould Square, Crutched Friars, or at 7. Cleveland Street, Mile End Road.

"January, 1850.

"ARTHUR TREVELYAN,
"Associate."

ANON.

Map of Dublin (Vol. ix., p. 171.).—Your querist C. H. will be shown with pleasure, at my house, a very ancient map of Dublin, styled "An Exact Copy of a Map of the City and Harbour of Dublin, from a Survey by John Rocque." There is no date to it, but I observe that the street I live in was called "Fleet Alley."

JOHN H. POWELL.

15. Westmoreland Street, Dublin.

Pettifogger (Vol. vii., p. 354.).—One who "would cast a mist before," and around, his clients. He makes it his constant practice to raise a "petty-fog."

"And thus much for this cloud, I cannot say rather than *petty-fog* of witnesses, with which Episcopal men would cast a mist before us, to deduce their exalted Episcopacy from Apostolick Times."—Milton, of *Prelatical Episcopacy*, Ed. Col. Amst., 1698, vol. i. p. 245.

Is not this a more probable origin of the word than the *pettivogueur* of our etymologists? And MR. KEIGHTLEY will, I am sure, permit me to suggest that it is a derivation at least as obvious and expressive as *pettyfolker*.

WILLIAM BEAL.

Brooke Vicarage, Norfolk.

Views in London by Canaletto (Vol. ix., p. 106.).—In reply to the Query of your correspondent GONDOLA, I beg to say that I have long had the pleasure of possessing one of Canaletto's London views, that of the Thames from the Temple Gardens, in which the hand that painted gondolas and masks may be traced in Thames wherries and grave Templars. I believe there are others in the collections of the Dukes of Buccleugh and Northumberland.

EDMUND PHIPPS.

Park Lane.

During the residence of Antonio Canaletto at Venice, he painted a number of pictures, at low prices, for Joseph Smith, Esq., the British consul; but that gentleman retailed those paintings at an enormous profit to English travellers. Canaletto finding this out, was induced to visit a country where

his talents were so much appreciated. He accordingly came to England in the year 1746, being then about fifty years of age. He remained with us six or seven years (not *two*, as stated by Walpole), and during that period received great encouragement from the English nobility. His delineations of London and its environs, especially those of Thames scenery (of which he seems to have been very fond), are deservedly admired. Two of these are at Goodwood, and another (Parliament Street, looking towards Charing Cross) is in the Buccleuch Collection. Several London paintings were, at the beginning of the present century, in the possession of the Hon. Percy Wyndham. Some others are to be found in the royal collections, and in those of many noblemen and gentlemen of fortune.

EDWARD F. RIMBAULT.

London Fortifications (Vol. ix., pp. 174. 207.).—During the last civil war a fortification was erected at the Brill Farm, near old St. Pancras Church, where, 120 years after, Somers Town was built. A view of it is extant, and may be obtained for a few shillings. The Brill is also stated to have been a Roman station, but, I believe, without foundation.

G. J. S.

Tavistock Terrace, Holloway.

What Day is it at our Antipodes? (Vol. viii., pp 102. 649.).—After the able way in which this subject has been treated by A. E. B., I will only add an extract from *A Complete System of Geography*, by Emanuel Bowen, London, 1747, vol. iii. p. 250.:

"One thing more is worth observing concerning this place (Macao), namely, that the Portuguese Sunday here is the Saturday with the Spaniards of the Philippine Islands, and so forward through all the days of the week, although there be scarce any difference in the longitude of both places. But the reason is, the Portuguese, in coming to Europe, pass eastward, whereas the Spaniards, coming from America, pass westward; so that between both, they have sailed round the globe: in doing which there is necessarily one day lost, as we have taken occasion to show in the introduction to this work."

JOHN P. STILWELL.

Dorking.

Miscellaneous.

NOTES ON BOOKS, ETC.

When Dr. Ure tells us that from the year 1804, when he conducted the schools of chemistry and manufactures in the Andersonian Institution, up to the present day, he has been assiduously engaged in the study and improvement of most of the chemical, and many of the mechanical, arts; that during that period he has been habitually consulted professionally by proprietors of factories, workshops, and mines, to rectify what was amiss in their establishments, and to supply what was wanting, he shows clearly how great were his qualifications for the preparation of *A Dictionary of Arts, Manufactures, and Mines, containing a clear exposition of their principles and practice*: and it is therefore little wonder that a work undertaken with such advantages should have reached what is now before us, a "fourth edition, corrected and greatly enlarged." Dr. Ure has, in this edition, turned to good account the many novelties of an interesting and useful nature first displayed in the Great Exhibition, and his two portly volumes may be consulted with advantage not only by manufacturers and professional men, but by lawyers, legislators, and, in short, all who take an interest in those achievements of science to which this great country owes its pre-eminence.

Unnoticed by reviewers, and unaided by favour or influence, Mr. Keightley tells us that his *Mythology of Ancient Greece and Italy* has reached its third edition. So much the better, for it proves that the book has merits of its own, and those merits have won for it a place which will keep Mr. Keightley's name in memory as long as a love for classical literature and tasteful learning remains; and this, we suspect, will be longer than Mr. Keightley anticipates. As the success which has attended this valuable and original exposition of classical mythology renders it unnecessary to say one word as to its merits, we may content ourselves with stating that this edition has been carefully revised, has received numerous additions, and, although it is beautifully got up, is published at lower price than its predecessor.

The children of Lady Falmouth are blessed with a mother who possesses that invaluable gift, the art of making learning a pleasure; and we doubt not many a loving mother will be glad to find her labours lightened by the recently published *Conversations on Geography, or the Child's first introduction to where He is, what He is, and what else there is*, by Viscountess Falmouth, Baroness Le Despencer. These conversations strongly remind one of Mrs. Marcet's, and we can give them no higher praise.

Whatever difference of opinion may exist as to the partial or impartial character of M. de Custine's work upon *Russia*, it contains much matter which will be read at the present important crisis with considerable interest; and in reprinting it in their *Traveller's Library*, at a price which will place it within the reach of all classes of readers, Messrs. Longman have taken steps for securing to *Russia* by M. De Custine a wide-spread popularity.

Our valued correspondent MR. SINGER has kindly sent us a copy of a little offering to the manes of Shakspeare and Tieck, of which he has printed a few copies for private distribution. It is *The Midsummer Night, or Shakspeare and the Fairies, from the German of Ludwig Tieck*, by Mary C. Rumsay. The work, one of exuberant fancy, was written when Tieck was only sixteen, but only published by his friend Bulow in 1851. It is translated with great ability; and we regret, for the sake of the many who would wish to possess it, that MR. SINGER did not carry out his original intention, and publish it in aid of the funds for the monument to Tieck.

The Journal of Classical and Sacred Philology, No. I., March, 1854, is the first of a very valuable periodical, the nature and object of which are plainly indicated by its title. One very useful feature is its *Contents of Foreign Journals*, in which it records all the important contributions on sacred and classical philology inserted in the chief periodicals of the Continent.

We have before us the publications of *The Arundel Society*, or *Society for Promoting the Knowledge of the Fine Arts*, for the fourth year: and they are indeed of a nature to effect the great object for which the Society was instituted. They consist of eight engravings on wood from drawings made by Mr. Williams, who was sent by the Society to Padua expressly for the purpose, from the frescos of Giotto in the Arena Chapel. The woodcuts have

been executed by Messrs. Dalziel. With the rest of these prints will be issued a short description of the chapel and its frescos, prepared by Mr. Ruskin.

The Second Part of Mr. Netherclift's *Autograph Miscellany* contains facsimiles of the original depositions of their marriage by James II. and Anne Hyde; of an original letter from Luther to Cromwell, afterwards Earl of Essex; of a letter from Glover, Somerset Herald, to the Earl of Leicester; and of that portion of Sterne's *Sentimental Journey* in which is related the episode of "The Dead Ass."

The success which has attended the publication of Miss Burney's *Diary*, or, to give the work its more correct title, *The Diary and Letters of Madame D'Arblay*, has induced Mr. Colburn to commence a new edition of it in seven three-shilling volumes.

BOOKS AND ODD VOLUMES

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THE CIRCLE OF THE SEASONS. London, 1823. 12mo.

* * Letters, stating particulars and lowest price, *carriage free*, to be sent to MR. BELL, publisher of "NOTES AND QUERIES," 186. Fleet Street.

Particulars of Price, &c. of the following Books to be sent direct to the gentlemen by whom they are required, and whose names and addresses are given for that purpose:

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Wanted by *Geo. Newbold*, 8. Regent Street, Vauxhall Road.

AN ESSAY EXPLANATORY OF THE TEMPEST PROGNOSTICATOR IN THE BUILDING OF GREAT EXHIBITION. The last edition.

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ALLAN RAMSAY'S TEA-TABLE MISCELLANY. 1724.

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THE LADY'S POETICAL MAGAZINE, or Beauties of British Poets. 4 Vols. London, 1781.

THE HIVE, containing Vol. I. First Edition. 1724.

LONDON MAGAZINE. Vols. after the year 1763.

Wanted by *Fred. Dinsdale*, Esq., Leamington.

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Wanted by *Smith, Elder, & Co.*, 65. Cornhill.

Two Volumes of PLATES TO GLOSSARY OF ARCHITECTURE. Parker, Oxford. 1850.

Wanted by *Ed. Appleton*, Torquay.

Notices to Correspondents.

In consequence of the great length of MR. WINTHROP'S valuable communication, and the number of articles waiting for insertion, we have this week the pleasure of presenting our readers with an extra eight pages.

We are compelled to postpone until next week Replies to several Correspondents and Notices of several books.

AN OLD F.A.S., F.R.S., F.S.A. *We have not yet been favoured with a reply to our request for the name of this Correspondent, who states that "he selected the Eyre drawings from a large mass of papers" in 1847, and "is satisfied they are authentic drawings." We therefore repeat our request.*

MATHEW, A CORNISH FAMILY (Vol. ix., p. 22.).—Excuse my troubling you again about *real* names, but it is extraordinary how shy some men seem to be of their *cognomen* and habitat. In a late Number, p. 222., B. of Birkenhead asks about the family of Mathew. A great-great-grandmother of mine was of that Devon family, and I should be delighted to learn more than I know of her, and perhaps B. Birkenhead might instruct me. Do try to draw him from his cover.

H. T. ELLACOMBE.

Rectory, Clyst St. George, Topsham, Devon.

ZETA. *For notices of Mother Shipton, see "N. & Q.," Vol. v., p. 419.*

C. W. B. *Is our Correspondent quite certain there was a naval engagement, as the words of the pedigree simply state that he was on board when he died, in command of a body of Marines?*

J. D. *The wedge-shaped baths of glass, originally recommended by MR. ARCHER, are certainly the best. They are economical in use and very cleanly. They may, no doubt, be procured from MR. ARCHER. The one we have in we got at Hockin's. There is little doubt that if, when properly constructed, they were sold at a reasonable price, they would entirely supersede baths of gutta percha.*

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